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Extreme Speech, Public Order, and Democracy: Lessons from *The Masses*

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1. Introduction

The unique history and culture of each nation threatens to confound any attempt at cross-cultural constitutional normative critique. Even with respect to nations with similar legal cultures, a regulation anathema to a core constitutional principle of one country might be constitutional in another. For instance, a law requiring a license to operate a television set would in the US be a patently unconstitutional restriction on free speech and freedom of the press; yet in the UK, the very different traditions concerning ownership and financing of the broadcast media make such a requirement perfectly compatible with free speech norms.

Do the markedly different approaches in the US and the UK towards the regulation of hate speech and similar forms of extreme speech present a similar phenomenon? Might it be that while in the United States bans on the virulent public expression of racist ideas violate basic conceptions of free speech, historical and cultural differences make such restrictions in the UK, as well as in most of the rest of Europe, perfectly compatible with freedom of expression?[1] If so, it would be singularly inappropriate for anyone not intimately familiar with the history and culture of a particular jurisdiction to criticize judicial decisions on this subject. But while there can be no doubt that some of the disparity between America and other democracies with regard to hate speech regulation stems from historical and cultural differences, there remains a core free speech principle that

[*] I am grateful to Eric Barendt, Ivan Hare, David Kaye, and Jeffrie Murphy for their helpful comments and suggestions and to David Ferrucci and Kelly Frailing for their valuable research assistance.

[1] For an excellent discussion of American free speech exceptionalism both with respect to hate speech and more generally, see F. Schauer, 'The Exceptional First Amendment' in M. Ignatieff (ed.), *American Exceptionalism and Human Rights* (Princeton: Princeton UP, 2005). See also, J. Weinstein, 'An Overview of American Free Speech Doctrine and its Application to Extreme Speech', this volume.

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must be respected in any democracy worthy of that name and against which the propriety of free speech decisions of any democracy can be measured.

After first describing this core free speech principle and its derivation from a basic precept of democratic self-governance, I will discuss two recent English cases: *Hammond* v. *DPP*[2] and *Norwood* v. *DPP*.[3] As I will demonstrate, *Hammond* upholds a breach of this core free speech principle, while *Norwood* arguably does so. Finally, I will discuss speech at the periphery of this core—expression that government can in principle punish consistently with basic precepts of democracy, but which may nonetheless require protection lest in practice the core right of democratic participation be impaired.

In the course of this discussion I will point out the systemic failures of English case law that have left the core free speech right vulnerable and will suggest ways to remedy this problem. In particular, I will draw upon hard learned lessons from the United States where for decades after it first began to grapple with free speech problems, the Supreme Court also failed to provide adequate protection to the dissent that must be permitted in any democratic society. Here we will meet the redoubtable Justice Oliver Wendell Holmes and his famous 'clear and present danger' test which permitted the government to imprison protestors, including Eugene Debs, the Socialist candidate for President of the United States, for vehemently condemning American involvement in World War I[4] and later to jail the leaders of the Communist Party for teaching Marxist-Leninist doctrine.[5]

Shortly before Justice Holmes developed the 'clear and present danger' test, Learned Hand, an aptly named federal District Court judge, took a quite different approach in deciding whether a postmaster could legally refuse to mail a radical monthly magazine called *The Masses* because of its vehemently anti-war cartoons and text. Hand found legally irrelevant what he admitted were persuasive arguments that the expression would impair the war effort by stimulating draft resistance. Instead, he held that the sole question before him was whether the expression was

> within the scope of that right to criticize either by temperate reasoning, or by immoderate and indecent invective, which is normally the privilege of the individual in countries dependent upon the free expression of opinion as the ultimate source of authority.[6]

Finding the material to be within this core democratic individual right of freedom of expression, Hand rejected the government's attempt to suppress the magazine.

As in art and science, an idea in law can also be too far ahead of the times to be accepted: Hand's decision was soon reversed, with the Court of Appeals noting

[2] [2004] EWHC 69 (Admin).
[3] [2003] EWHC 1564 (Admin).
[4] *Debs* v. *US* 249 US 211 (1919).
[5] *Dennis* v. *US* 341 US 494 (1951).
[6] *Masses Publishing Co.* v. *Patten* 244 F 535, 539 (SDNY, 1917).

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that if the 'natural and reasonable effect of what was said is to encourage resistance to a law', the publication could be suppressed.[7] It would be more than half a century before Hand's approach was finally vindicated in the Supreme Court's seminal *Brandenburg* opinion.[8]

These early American cases reached wrong results because they asked the wrong question and are thus instructive for judges in England and other democracies in the early stages of developing free speech doctrine. We will see that to build doctrine adequate to protect dissent that must be allowed in a democracy, the key question cannot be whether the speech at issue is likely to impair some important government interest. Rather, as Judge Hand emphasized, the crucial question is whether the speaker has a right to engage in this expression in a society premised on democratic self-governance.

2. The Core Free Speech Right of Democratic Participation

'Democracy' literally means 'rule by the people'.[9] But precisely what practices are necessary to constitute such a state of affairs is an extremely contentious question. Not only are there different theories about what democracy should entail, but like the free speech principle, the practice of democracy in various countries will vary according to each society's particular culture and history. Nonetheless, I think it is safe to say that whatever else rule by the people may require, virtually all modern democratic theorists agree that it has at least two essential components: 1) popular sovereignty—a state of affairs in which the people exercise ultimate control over their government[10] and 2) the right of each citizen to participate in the process by which society's collective decisions are made.[11]

[7] *Masses Publishing Co*. v. *Patten* 246 F 24, 38 (2nd Cir, 1917).

[8] *Brandenburg* v. *Ohio* 395 US 444 (1969).

[9] The term was first used in the fifth century BCE by the Greek historian Herodotus and combines the Greek words *demos* ('the people') and *kratein* ('to rule'). B. Holden, *Understanding Liberal Democracy*, 2nd edn. (New York: Harvester Wheatsheaf, 1993), 7.

[10] Barry Holden observes that '[d]emocracy, indeed, is often characterized as a political system in which the people are sovereign, or in which there is there is popular sovereignty' and that 'certainly the notion of popular sovereignty is very deeply embedded in democratic thought.' Ibid., 9. Holden thus defines democracy as 'a political system in which the whole people, positively or negatively, make, and are entitled to make, the basic determining decisions on important matters of public policy'. Ibid., 8.

[11] 'In liberal democratic theory conceptions of "the people" are to a crucial extent "individualist" .... [Thus] such conceptions imply that "the people" is simply a collection of individuals.' Ibid., 14. 'Equality before the law leads to the demand that all men should also have the same share in making the law. This is the point where traditional liberalism and the democratic movement meet.' F. Hayek, *The Constitution of Liberty* (Chicago: Univ Chicago Press, 1960), 103. See also R. Dahl, *Preface to Democratic Theory* (Chicago: Univ Chicago Press, 1963), 37: 'An organization is democratic if and only if the process of arriving at governmental policy is compatible with the condition of popular sovereignty and the condition of political equality.'

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(i) Popular Sovereignty

The commitment to popular sovereignty alone arguably creates a narrow but very powerful right of free speech. If the people are the ultimate source of political authority, they must be able to speak to each other about all matters within the scope of this authority, that is, on all matters of public concern. If, to the contrary, the government were able to prohibit speech on the ground that it will persuade the populace to formulate erroneous public policy, then the government, not the people, would be the ultimate sovereign. As James Madison argued over two centuries ago, a logical consequence of a commitment to popular sovereignty is that 'the censorial power is in the people over the Government, and not in the Government over the people'.[12] Or as the United States Supreme Court has more recently declared, an essential purpose of free speech is to 'assure unfettered interchange of ideas for the bringing about political and social changes desired by the people'.[13]

It is also arguable, however, that the commitment to popular sovereignty alone may *not* be sufficient to produce a right of free speech. For what if the people in the exercise of their sovereignty decide to restrict advocacy of political change? And indeed, restrictions on extreme speech in democratic societies are often imposed not by some executive decree or police action, but by legislation truly expressing the will of the people. So the question becomes, can the people themselves consistently with a commitment to popular sovereignty restrict future exercises of their own sovereignty? This is an old[14] and difficult riddle not unlike the old Sunday school query about whether an omnipotent God can make a rock so heavy He can't lift it, or, or less celestially, Mill's famous discussion about whether liberty entails the right to sell oneself into slavery.[15] Fortunately, we need not attempt to resolve this difficult issue here, because the other necessary component of democracy—the individual right to participate in the political process—assures each person the right to participate in the speech by which we

[12] 4 Annals of Cong. 934 (1794).

[13] *Roth* v. *US* 354 US 476, 484 (1957). See also *R* v. *Shayler* [2002] UKHL 11, para. 21 (Lord Bingham): 'Modern democratic government means government of the people by the people for the people. But there can be no government by the people if they are ignorant of the issues to be resolved, the arguments for and against different solutions and the facts underlying those arguments'. A. Meiklejohn, *Free Speech and its Relation to Self-Government* (New York: Harper and Brothers, 1948), 26–27: 'The principle of freedom of speech springs from the necessities of the program of self-government. . . . It is a deduction from the basic American agreement that public issues shall be decided by universal suffrage'.

[14] Karl Popper notes that Plato implicitly raised it in his criticism of democracy and his story of the rise of the tyrant. See K. R. Popper, 1 *The Open Society and Its Enemies, Part I: The Spell of Plato* (Princeton, NJ: Princeton UP, 1950), 122. See also C. A. Auerbach, 'The Communist Control Act of 1954: A Proposed Legal-Political Theory of Free Speech' (1956) 23 *U. Chi. L. Rev.* 173, 191–93.

[15] 'On Liberty' in J. Gray, (ed.), *On Liberty and Other Essays* (Oxford: OUP, 1998), 113–14.

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govern ourselves, even if a majority of the people wish to exclude some speakers or certain views from the conversation.

(ii) The Individual Right of Political Participation

A basic precept of Enlightenment philosophy posits that though individuals may differ in their natural talents and abilities, each of us is of equal moral worth.[16] Ever since the idea of moral equality was loosed upon the world, there has been perpetual debate about what precisely it entails. There is now general agreement, however, that this precept includes at least a formal or procedural right of each person to participate in the process by which public issues are decided.[17] This right of equal participation in the political process includes not just equal voting rights but embraces also the right of each citizen to participate in the discussion by which public opinion is formed:

> The will of the community, in a democracy, is always created through a running discussion between majority and minority, through free consideration of arguments for and against a certain regulation of a subject matter. That discussion takes place not only in parliament, but also, and foremost, at political meetings, in newspapers, books, and other vehicles of public opinion. A democracy without public opinion is a contradiction in terms.[18]

[16] See, e.g. I. Kant, *The Metaphysics of Morals* Trans. M. Gregor (Cambridge: CUP, 1991 [1797]), 434–35; J. Locke, *Second Treatise of Government*, C. B. Macpherson (ed.), (Indianapolis, IN: Hackett Publishing Co. Inc., 1980), ch.2 §§ 4, 6, 8, 9, 52. See also the statement of Thomas Rainboro during the 1647 Putney debates: 'Really I think that the poorest he that is in England has a life to live as the richest he; and therefore truly, Sir, I think it's clear, that every man that is to live under a Government ought first by his own consent to put himself under that Government.' R. A. Licht, (ed.), *Old Rights and New* (Washington, D.C.: American Enterprise Institute, 1993), 54.

[17] As one of the most prominent contemporary democratic theorists has explained: 'The democratic process is generally believed to be justified on the ground that people are entitled to participate as political equals in making binding decisions, enforced by the state, on matters that have important consequences for their individual and collective interest.' R. Dahl, *Controlling Nuclear Weapons: Democracy versus Guardianship* (Syracuse, NY: Syracuse UP, 1985), 5.

[18] H. Kelsen, *A General Theory of Law and State* Trans. A. Wedberg (Cambridge, MA: Harvard UP, 1945), 287–88. See also Hayek (n. 11 above), 101:

> Democracy is, above all, a process of forming opinion . . . . The conception that government should be guided by majority opinion makes sense only if that opinion is independent of government. The ideal of democracy rests on the belief that the view which will direct government emerges from an independent and spontaneous process. It requires, therefore, the existence of a large sphere independent of majority control in which the opinions of individuals are formed. There is a widespread consensus that for this reason the case for democracy and the case for freedom of speech are inseparable.

In accord with these views, the High Court of Australia found a right to engage in political speech implicit in the democratic structure of the Australian Constitution. See *Australian Capital Television Pty. Ltd.* v. *Commonwealth* (1992) 177 CLR 106, 139–40. '[T]he great underlying principle of the Constitution was that rights of individuals were sufficiently secured by ensuring an equal share in political power. Absent freedom of communication, there would be scant prospect of the exercise of that power.' (Mason, CJ, internal quotation marks omitted).

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Such an opportunity for free and equal participation is vital to the legitimacy of the entire legal system.[19] If an individual is excluded from participating in public discourse because the government disagrees with the speaker's views or because it finds the ideas too disturbing or too dangerous, any decision taken as a result of that discussion would, as to such an excluded citizen, lack legitimacy. So if someone is barred from expressing a view on a proposed tax increase or whether the nation goes to war, or the country's immigration policy, to that extent and with respect to that citizen, the government is no democracy but rather an illegitimate autocracy.[20]

This commitment to equal participation protects audience interests as well. The analogue to this core speaker's right is the precept that, in dealing with people in their capacity as the ultimate governors of society, government must treat each member of the polity as an equal, rational, and autonomous agent. Thus it is a core democratic precept that government may not restrict speech on the ground that it might cause the audience to adopt some unwise or even disastrous social policy.[21] To do so would be contrary to the precept that the people, collectively, have a right to govern and, individually, have a right to participate freely and equally in this collective decision making. Like the speaker right just described, this is a true individual right, not just a collective one, intimately tied to political legitimacy. And for this reason, it simply does not matter how many people support the speech repressive measure, so long as there is one person who has not agreed to surrender the right to be treated as a rational agent with respect to the

[19] See R. M. Dworkin, Foreword, this volume. See also R. C. Post, 'Democracy, Popular Sovereignty, and Judicial Review' (1998) 86 *Cal. L. Rev.* 429, 434: 'Finding it implausible to postulate [as did Rousseau] that the particular wills of individuals can be determinably identified with the specific enactments of the state, [modern] critics have suggested that democratic self-government requires that the particular will of individuals be connected instead to the *system* by which these enactments are created. They have thus proposed that law making be rendered dependent upon popular opinion, and they postulated that a necessary condition for citizens to identify with public opinion is the guarantee that all can freely participate in the public deliberations by which public opinion is formed.'

[20] N. Bobbio, *Democracy and Dictatorship: The Nature and Limits of State Power* Trans. P. Kennealy (Minneapolis, MN: Minnesota UP, 1989), 137: 'Democratic forms of government are those in which the laws are made by the same people to whom they apply (and for that reason they are autonomous norms), while in autocratic forms of government the law-makers are different from those to whom the laws are addressed (and are therefore heteronomous norms).'

[21] This is not to say, of course, that every person in society is in fact either autonomous or capable of making rational decisions about public policy. Rather, this is an ascription growing out of the fact that the people in the democracy have a right to govern and that it would be oxymoronic to view the ultimate sovereigns in society as lacking the capacity to make rational decisions on matters within the sphere of their democratic authority. In other capacities, however, such as consumer or as medical patient or as any other type of decision maker outside of the political realm, government may, without violating the core precept of democracy I am describing, treat us in accord with the reality that we are not full rational beings and in many contexts not fully autonomous. For a fuller discussion of this point, see J. Weinstein, 'Fools, Knaves, and the Protection of Commercial Speech: A Response to Professor Redish' (2007) 41 *Loy. L.A. L. Rev.* 133, 162–67.

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public discussion of social policy matters.[22] Thus the right to participate in discussion of public affairs both as a speaker and as a potential recipient of ideas is not, as Gordon Brown has suggested, forfeited or even diminished just because the speech in question 'offends mainstream opinion'.[23]

(iii) Public Discourse

These two essential components of democracy—popular sovereignty and the individual right of political participation—generate a right of every citizen to participate in the discussion by which the people govern themselves through the formation of public opinion. As Eric Barendt has noted, this speech includes more than 'political speech in the narrow sense' but more generally embraces 'speech concerning the organization and culture of society'.[24] Courts and commentators often refer to this core democratic speech as 'public discourse',[25] which is the term I will adopt in this chapter as shorthand for that democratic conversation in which every member of society has a right to participate.

It is not, however, just the content of the speech that determines whether expression forms part of public discourse. Equally important is whether the speech occurs in settings dedicated to democratic self-governance, such as in a public forum like Hyde Park Corner or a town square, or as in many democracies including the United States, the corners of public thoroughfares. In addition to places dedicated to public discourse, there are also media essential to this conversation, including newspapers, books, films, and magazines, and more recently the Internet. As Robert Post has observed, 'prerequisites for democracy are commonly met in modern industrial societies by . . . media [that] combine to

[22] Although formal equality is obviously a crucial value underlying the modern concept of democracy, it arguably does not securely anchor the right to participate in the political process as an individual right. If, as discussed above, text accompanying n. 15, the people can in an exercise of their sovereignty limit this sovereignty, then universal restrictions on political participation such as denying everyone the vote (either generally or for certain offices) or the right to participate in public discourse (either altogether or on certain topics) would not violate this equality norm. In contrast, even if consistent with both popular sovereignty and equality such restrictions would obviously implicate the legitimacy of the entire system of government. Thus so far as individual as opposed to collective interests are concerned, the 'normative essence' of democracy is the legitimation served by the opportunity of each individual to participate in the political process. See R. C. Post, *Constitutional Domains: Democracy, Community and Management* (Cambridge, MA: Harvard UP, 1995), 273.

[23] In reacting to the acquittal of two leaders of the British National Party for inciting racial hatred, Brown declared: 'Any preaching of religious or racial hatred will offend mainstream opinion in this country. We have got to do whatever we can to root it out from whatever quarter it comes.' See 'Tougher race hate laws considered', *BBC News*, 11 November, 2006, <http://news.bbc.co.uk/1/hi/uk_politics/6137722.stm> (last accessed 23 July 2008). This case is discussed below.

[24] *Freedom of Speech*, 2nd edn. (Oxford: OUP, 2005), 189.

[25] Eg *Hustler Magazine, Inc.* v. *Falwell* 485 US 46, 55 (1988); *Cohen* v. *California* 403 US 15, 22 (1971); Barendt (n. 24 above), 183, 186; A. Geddis, 'Free Speech Martyrs or Unreasonable Threats to Social Peace—"Insulting" Expression and Section 5 of the Public Order Act 1986' [2004] *Pub. L.* 853, 855, 870; Post (n. 22 above), 119–78.

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form a structural skeleton that is necessary . . . for public discourse to serve the constitutional value of democracy'.[26]

As important as democratic self-governance may be, not all settings can be dedicated to public discourse. Of necessity there will be some places such as the courtroom, classroom, or the government workplace dedicated to other purposes and here government has far more leeway to legitimately restrict speech. But in settings that do form part of the 'structural skeleton' necessary for democratic self-governance, speech will tend to be considered part of the public discourse regardless of its content.[27] And where the speech is both overtly political or otherwise concerns 'the organization and culture of society' *and* occurs in a setting dedicated or essential to democratic self-governance, such expression might be fairly characterized as core public discourse and as such has the strongest claim to be immune from government regulation because of its viewpoint.

Finally, I want to emphasize that participatory democracy is not the only reason for protecting speech. There are, in addition, such well known justifications as the search for truth and the promotion of individual autonomy. But unlike the right to participate in the speech by which we govern ourselves, there is no consensus that either of these justifications underlies the core of a free speech principle necessary to any free and democratic society, and for that reason I do not focus upon them in the following analysis. Nevertheless, it should be borne in mind that even though a speech regulation might not offend the core democratic precept that I have identified, it could violate some other important free speech value.

3. Breaching the Core: *Hammond* v. *DPP*

(i) Facts and Divisional Court Decision

In October 2001, Harry John Hammond, an Evangelical Christian preacher, travelled to the town square in Bournemouth, England where he began preaching while holding a large placard bearing the following statement: 'Stop Immorality', 'Stop Homosexuality', 'Stop Lesbianism'. The sign also contained the statement 'Jesus is Lord' on each of its four corners. A group of about 30 to 40 people gathered around Hammond, arguing and shouting. Some threw soil at him and at one point someone tried to pull the placard away from Hammond, causing him to fall backwards. When Hammond stood up again with the sign and resumed preaching, someone poured water on him. A police officer who witnessed these events spoke to Hammond and asked him to put down the sign and leave the area, but he refused. A few minutes later, after being approached by

[26] 'Recuperating First Amendment Doctrine' (1995) 47 *Stan. L. Rev.* 1249, 1276.

[27] See J. Weinstein, *Hate Speech, Pornography, and the Radical Attack on Free Speech Doctrine* (Boulder, CO: Westview Press, 1999), 45–46; Post (ibid.), 1253.

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several members of the public who were outraged that Hammond was not arrested, the officer arrested Hammond for 'provoking violence' in breach of the peace.[28]

Hammond was charged with violating Section 5 of the Public Order Act 1986, which makes it an offence to use 'any threatening, abusive or insulting words or behaviour, or disorderly behaviour or [to display] any writing, sign, or other visible representation which is threatening, abusive, or insulting within the hearing or sight of a person likely to be caused harassment, alarm or distress thereby'.[29] To obtain a conviction, the prosecution must show that the defendant intended his conduct to be 'threatening, abusive or insulting' or that he was aware that it may be so.[30] The Act allows the accused to defend against a charge by proving that his conduct was 'reasonable'.[31]

The Magistrates' Court found Hammond guilty of violating the Act. The justices ruled that that the statements on his sign were 'insulting' and 'caused distress to persons who were present'. In their view 'there was a pressing social need' for the restriction on Hammond's expression because Hammond's message implied that the gay and lesbian communities were immoral and because 'there is a need to show tolerance towards all sections of society'. Because in the justices' view Hammond's protest 'went beyond legitimate protest', 'was provoking violence and disorder' and 'interfered with the rights of others', the justices held that 'the restriction on his right to freedom of expression' imposed by application of the Act to his speech 'was a proportionate response' and that Hammond's display of his sign under these circumstances was 'not reasonable'. They fined him £300 pounds and ordered forfeiture of his sign.[32]

The Divisional Court dismissed Hammond's appeal. In an opinion by May LJ, the court held, though 'not without hesitation', that it was 'open to the justices' to reach the conclusion that the words on the placard were 'insulting' within the meaning of the Public Order Act. Noting that the message on the sign was 'not expressed in intemperate language', the court 'considered very carefully' whether it should conclude that the words on the sign were incapable of being held to be insulting. However, the court 'came to the clear conclusion' that the Magistrates' Court could find the words insulting 'not least because the words on the sign appear to relate homosexuality and lesbianism to immorality'.[33] In addition, the

[28] *Hammond* (n. 2 above), para. 5.
[29] Public Order Act 1986, s. 5(1).
[30] Ibid., s. 6(3).
[31] Ibid., s. 5(3)(c). For a helpful discussion of the background of the Public Order Act and free speech cases arising under it, see Geddis, n. 25 above.
[32] *Hammond* (n. 2 above), para. 19. The justices also made the following findings: One member of the public was 'disgusted' by the sign and found it 'annoying' and, though not personally insulted, felt that it was 'insulting to homosexuals and lesbians'; another bystander was 'upset, shocked and insulted by the sign'; a third found the sign 'insulting'; a homosexual who lived nearby was 'personally insulted' and his partner found the sign 'insulting and distressing'. Ibid., para. 5.
[33] Ibid., para. 32.

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court found that that the justices 'considered the questions they were obliged to consider' both in relation to the Act and with respect to the right of freedom of expression under Article 10 of the European Convention on Human Rights (ECHR).[34] The court therefore also concluded that it was 'open to them [the magistrates]' to reach the conclusion that Hammond's conduct was 'not reasonable' and that therefore Hammond was not entitled to the defence provided by the act for making insulting statements.[35]

(ii) Identifying the Core Breach

Despite paying lip service to the 'cardinal importance of freedom of expression in a democratic society'[36] the decision dismissing the appeal was but the sad denouement of a saga in which Hammond's right to participate in public discourse was continually violated. His core free speech right was first violated by the failure of the police to protect him from physical assault, then compounded by his arrest, trial, and conviction for doing no more than expressing, in fairly innocuous terms, a dissenting view about the 'the organization and culture of society'. There can be no denying Hammond's speech was on a matter of public concern. The morality of homosexual activity is a topic that has obvious relevance to current social policy matters such as the desirability of same sex marriage or the propriety of the ordination of homosexual clergy within the Anglican community, not to mention the culture and morality of British society in general. Nor can there be any doubt that Hammond was expressing his views in a setting dedicated to public discourse—the pedestrian area of a town square where speakers evidently are free to express their views on issues of the day. It would appear, then, that Hammond's speech lies at the heart of the expression that must be allowed in any free and democratic society.

The Divisional Court's rationale for holding that Hammond's expression 'went beyond legitimate protest' was that it was open to the justices to find his expression 'insulting'.[37] But such a rationale for excluding Hammond's expression from public discourse is grossly inadequate. To appreciate why this is so, it is crucial first to distinguish two ways in which expression may be insulting. Expression may be insulting because it conveys an idea in an insulting *manner*,

[34] The Human Rights Act 1998 requires courts to interpret legislation so far as possible to be compatible with Convention rights: s. 3(1). If it is unable to interpret a provision to be compatible with such a right, a court may issue a declaration of incompatibility: s. 4(4). Such a declaration, however, does not affect the validity, operation, or enforcement of the provision and is not binding on the parties in the proceeding in which it was made: s. 4(6). Though not using this precise language, the Magistrates' Court in substance found the application of s. 5 of the Public Order Act compatible with the right of freedom of expression under Article 10 of the Convention. See *Hammond* (n. 2 above), paras. 20, 27–28.

[35] Ibid., para. 33.

[36] Ibid.

[37] The court seems to acknowledge that if Hammond's speech was 'reasonable' then the police should have protected him against the angry crowd. Ibid., para. 7.

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such as by the use of epithets, profanity, mockery, or demeaning caricature. Alternatively, expression may be insulting because the *idea* itself is insulting. Significantly, it was not the manner of Hammond's expression that was insulting: the sign contained no epithets or other insulting terms for homosexuals, nor did Hammond use profanity, mockery, or offensive caricature to express his ideas. Indeed, it is difficult to imagine how Hammond could have expressed the idea he wanted to convey in a more civil manner without obscuring its meaning.[38]

The message on Hammond's sign was thus insulting to certain members of the audience purely because of the idea it expressed—that homosexuality is immoral. Whether the government can, consistently with the core right of democratic participation, impose civility norms on public discourse by banning insulting or offensive forms of communication such as the use of epithets or inflammatory symbols is a difficult question which I shall consider below. But the proposition that speakers may be excluded from participating in public discourse because others may find their ideas insulting and therefore threaten or assault the speaker or otherwise breach the peace is patently inconsistent with the fundamental right to participate in the discussion by which people in a democratic society debate matters of public concern.

The Divisional Court quotes the European Court of Human Rights' (ECtHR) statement that because freedom of expression is 'one of the essential foundations of a democratic society', it must include the right not only to express 'ideas that are favourably received', but also those that 'offend, shock or disturb'.[39] And indeed, in modern, pluralistic democracies there are few matters worth debating that will not elicit a viewpoint that someone will find offensive, shocking, or disturbing. Therefore, as Sedley LJ, aptly observed, 'Freedom only to speak inoffensively is not worth having'.[40] But if one has the right to express ideas as part of public discourse that 'offend, shock or disturb', why does this right not extend to ideas that 'insult'?

(iii) A Countervailing Right Not to be Insulted?

There are hints in the *Hammond* decision that unlike offensive, shocking, and disturbing ideas, insulting ideas can legitimately be excluded from public discourse because they violate the rights of others. Thus without expressly relying on this ground, the Divisional Court refers to the justices' finding that 'Mr Hammonds's behaviour went beyond legitimate protest [because] it interfered with the rights of others.'[41] Although this position may have superficial appeal, it cannot withstand analysis.

[38] Accord, Geddis (n. 25 above), 865: 'The practical effect of the outcome to this case is that the speaker was left with no effective way of expressing his beliefs on the issue of same-sex relationships.'
[39] *Hammond* (n. 2 above), para. 15, quoting *Sunday Times* v. *UK* (No 2) [1992] 14 EHRR 123.
[40] *Redmond-Bate* v. *DPP* (1999) 7 BHRC 375, [1999] Crim LR 998.
[41] *Hammond* (n. 2 above), para. 19.

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To begin with, as a technical matter, there is no general right in the UK to recover damages for insulting ideas expressed in public discourse. The absence of a private cause of action does not of itself prove that a right does not exist (personal rights can be protected solely by the criminal law). However, it does suggest that people have no actual right to be protected against the expression of insulting ideas in public discourse, but at most have some inchoate *interest* in not being insulted by such expression.[42] In addition, it is far from obvious that insulting ideas are categorically more injurious than offensive, shocking, or disturbing ideas in terms of the emotional injury they inflict. For instance, do homosexuals seeing a sign proclaiming that homosexuality is immoral suffer greater emotional injury than do people with loved ones fighting in Iraq who encounter anti-war protestors carrying signs supporting the insurgency? The court agrees that the interest people may have in not being offended, shocked, or disturbed by ideas expressed in public discourse does not outweigh the right of other individuals to express these views on matters of public concern or the audience's interest in hearing these ideas. The court, however, does not explain the basis for categorically deeming the injury caused by insulting ideas as more grievous than that caused by offensive, shocking, or disturbing ones and it is difficult to imagine a principled rationale for this distinction.

Finally, the sheer number of ideas routinely expressed on hotly contested public issues likely to be considered insulting to someone suggests that the court did not really mean to imply that there is a general right not to be insulted by ideas which trumps the right to participate in public discourse. To list just a few examples of ideas regularly expressed in public discourse that will likely insult some member of the audience: the government officials who led us into the war in Iraq are incompetent; people who support free trade are greedy; women who have abortions commit infanticide; those who oppose same sex marriage are bigots; people who eat genetically modified food are foolish; those who wear fur are cruel; or foxhunters are, to use Mr Hammond's term, immoral. It is implausible, however, that in contemporary Britain a speaker would be arrested, tried, and convicted under the Public Order Act for holding up a sign in a public square with the message 'Foxhunting is Immoral', even if those insulted by the sign assaulted the speaker. But if this is true, then there is no general right not to be insulted by ideas expressed in public discourse that outweighs 'one of the essential foundations of a democratic society'.

Of course, it could be forcefully argued that sexual orientation is for most people more central to their personality than pursuits such as foxhunting. Accordingly, it may well be that condemning homosexuality as immoral insults homosexuals more profoundly than calling foxhunting immoral insults foxhunters. But even if this is true, it is far from clear that the expression of the idea

[42] '[P]eople do not have a legal right to prevent criticism of their beliefs or for that matter their way of life'. *Nuxoll* v. *Indian Prairie School Dist*. 523 F. 3d 668, 672 (7th Cir, 2008) (Posner, J).

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that homosexuality is immoral is sufficiently more insulting than most other insulting ideas to justify giving homosexuals a right not to encounter this perspective in public conversation. And by what criteria are law enforcement officials and judges to make such judgments? Whatever formal criteria they are instructed to use, it is naïve to believe that these decision makers will be able to measure the degree of insult free from their own views about the allegedly insulting idea. Or equally disastrous from a free speech point of view, even if police officers, jurors, and judges are able to keep their personal views at bay, their judgments will still likely be influenced by the dominant societal view about the idea at issue. For instance, it is highly doubtful that Hammond's conviction turned on some principled, objective assessment that the degree of insult in associating homosexuality with immorality transcended the garden-variety insults common in public discourse. It is much more likely that Hammond's expression was considered so insulting as to be 'beyond legitimate protest' because it profoundly offended the contemporary orthodoxy that homosexuality is not immoral.

There is nothing wrong with new dominant narratives replacing old ones. Social progress depends on such a process. But the core right of participatory democracy that we are considering requires that people must remain free to challenge the new dominant narratives as well as remnants of old ones.

(iv) Distinguishing Public Discourse from Personal Abuse

But here I want to draw another important distinction. While the reality of life in a pluralistic modern democracy forecloses any general legal right not to be insulted by ideas expressed in public discourse such as in books, newspapers, or signs carried by protesters in a public square, the robust public conversation necessary to any democracy does not require that speakers be free to hurl insults at other individuals in face-to-face confrontations. The United States Supreme Court recognized this distinction nearly 70 years' ago in *Cantwell* v. *Connecticut*,[43] a case with facts similar to *Hammond* but which reaches the opposite result.

Jesse Cantwell, a Jehovah's Witness proselytizing in a heavily Catholic neighbourhood, asked for and received permission from two men he passed on the street to play them a phonographic recording. The recording attacked all organized religion, but particularly the Roman Catholic Church, as 'the instruments of Satan'. The listeners, who were Catholic, were incensed. One later testified that he felt like striking Cantwell. Any further confrontation was avoided, however, when Cantwell packed up his record player and walked up the street. Cantwell was charged with, and convicted of, inciting breach of the peace.[44] The Supreme Court unanimously reversed the conviction on the ground that Cantwell's activity was protected by the First Amendment right to free speech. In

[43] 310 US 296 (1940). [44] Ibid., 301–03, 308–09.

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doing so, it provided the following eloquent explanation why expression such as Cantwell's must be protected in a democracy:

> In the realm of religious faith, and in that of political belief, sharp differences arise. In both fields the tenets of one man may seem the rankest error to his neighbour. To persuade others to his own point of view, the pleader, as we know, at times, resorts to exaggeration, [and] to vilification . . . . But the people of this nation have ordained in the light of history, that, in spite of the probability of excesses and abuses, these liberties are, in the long view, essential to enlightened opinion and right conduct on the part of the citizens of a democracy.
>
> The essential characteristic of these liberties is, that under their shield many types of life, character, opinion, and belief can develop unmolested and unobstructed. Nowhere is this shield more necessary than in our own country for a people composed of many races and of many creeds.[45]

The Court emphasized, however, that the constitutional guarantee of free speech does not embrace 'profane, indecent, or abusive remarks *directed to the person of the hearer*' that are likely to provoke violence or disturb the peace. 'Resort to epithets or personal abuse', the Court emphasized, 'is not in any proper sense communication of information or opinion safeguarded by the Constitution . . . '.[46] A year later, the Court confirmed that such 'fighting words' fell outside the protection of the First Amendment, upholding breach of the peace conviction of a Jehovah's Witness who in a face-to-face confrontation called a law-enforcement official 'a God damned racketeer', and 'a damned Fascist'.[47] The Court observed that such 'fighting words' are 'no essential part of any exposition of ideas' and thus 'any benefit that may be derived from them is clearly outweighed by the social interest in order and morality'.[48]

If Hammond had directed anti-gay epithets at a particular individual or even towards a group of individuals immediately in front of him, he could have been punished for his speech consistent with the core democratic precept underlying freedom of expression. In any system of freedom of expression there must be a line separating the highly protected realm of public discourse from the rest of the speech in human society, particularly those words that often accompany or even instigate disputes having little or nothing to do with public affairs. Defining the boundaries between highly protected public discourse, on the one hand, and speech that may be readily regulated or even suppressed consistent with core precepts of democracy, on the other, presents a problem of no little difficulty.[49] But branding expression as going 'beyond legitimate protest' just because it expresses an idea that some will likely find insulting is a formula for excluding perspectives that challenge society's 'sacred cows' and thus is inconsistent with the

[45] Ibid., 310.
[46] Ibid., 309–10 (emphasis added).
[47] *Chaplinsky* v. *New Hampshire* 315 US 568, 569 (1942).
[48] Ibid., 572.
[49] See Post (n. 22 above), 163–78.

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fundamental individual right to participate in the formation of the public opinion by which social and political issues are ultimately decided in a democracy.

(v) What Went Wrong?

What accounts for a state of affairs in which a citizen in one of the world's oldest and proudest democracies has his core right violated at every level of the legal system? My diagnosis is that the core free speech right recognized in English free speech jurisprudence is both too weak and too indeterminate to adequately protect the public expression of ideas that 'offend, shock or disturb' dominant opinion. This is particularly true when the speaker is not an author of a book or newspaper columnist, but an ordinary citizen trying to express a dissenting view in the public square.

The primary defect of the *Hammond* decision is its failure to give the core free speech right to participate in public discourse the weight befitting a fundamental individual right. In the Divisional Court's view, the crucial question was whether Hammond's expression was in fact insulting and thus in the final analysis the court dismisses the appeal because it found it 'open' to the magistrates to find 'as a matter of fact that the words displayed on the sign were insulting'. This approach assumes that the right to express one's view on a matter of public concern in a forum dedicated to such expression can be outweighed by various legitimate societal interests such as protecting people against insult, or even more problematically as the magistrates held, by 'the need to show tolerance towards all sections of society'.[50]

This approach is both theoretically and pragmatically deficient. It is theoretically deficient because it fails to recognize that Hammond's activity involved the exercise of a fundamental right that cannot properly be outweighed even by important interests such as these. If public discourse were valued primarily because it is instrumental to some social goal such as truth discovery, social stability, or even reasons instrumental to democracy such as assuring a well-informed electorate, then suppressing speech to promote important social objectives might, depending on the circumstances, be appropriate. Whether protecting people from the emotional upset caused by hearing insulting ideas crucial to one's identity, or guarding society from the ill effects of expression of intolerant ideas, outweighs the various benefits that free speech produces for society as a whole is a difficult question, and in light of the clash of largely incommensurate values it presents, one most likely not susceptible to a definite answer. But while many other forms of expression may be valued for their contribution to social welfare, public discourse is primarily valued not for such

[50] *Hammond* (n. 2 above), para. 19. Geddis suggests that in *Hammond* and other cases involving protestors charged under the Public Order Act 'the courts have undertaken a pragmatic balancing exercise with respect to the costs and benefits of "insulting" expression . . . ' (n. 25 above), 869.

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instrumental reasons, but because each individual has a right to participate in the discussion by which collective decisions are made. Moreover, because the right of political participation is intimately bound up with the legitimacy of the entire legal system, it is an individual right of fundamental importance that can properly be outweighed only in the most extraordinary circumstances.

To appreciate the proper weight of the individual interest in political participation, including the right to participate in public discourse, imagine that the US government tried to exclude anyone who has expressed opposition to the war in Iraq from voting in the next national election on the grounds that the participation of these voters might result in the precipitous withdrawal of troops with disastrous consequences for national security. We would not decide the propriety of this exclusion by 'balancing' the right to vote against even something as important as the nation's security interests. Nor would it matter if it were demonstrably true that abruptly withdrawing the troops would have terrible consequence for national security. Rather, we would say that the right to vote is so fundamental that it cannot be infringed even for such important reasons. Similarly, we would not think the right of individuals to protest against the United States' continued military involvement in Iraq could be properly outweighed because of the tendency of such speech both to dispirit our troops and encourage the insurgents to continue to fight, even if it could be shown that such expression will likely lead to greater casualties among US soldiers.[51]

What these examples show is that even weighty reasons are ordinarily not sufficient justification for infringing a fundamental individual right such as the right to participate in the democratic process. In contrast, as the foregoing discussion of 'fighting words' shows, outside of public discourse, protecting people from insult is a strong enough interest to justify banning insulting speech. But like the interest in preventing people from being offended, shocked, or disturbed, this interest is not nearly important enough to justify excluding someone from expressing an idea in public discourse. Building a tolerant society, particularly about matters as essential to one's identity as sexual orientation, is a laudable societal goal. But just as protecting the war effort is insufficient grounds for suppressing anti-war protest, promoting tolerance is insufficient grounds for suppressing public discourse critical of homosexuality.

[51] In his *Masses* opinion, Judge Hand wrote that it was 'unhappily true' that 'a virulent attack upon the war and those laws which have been enacted to assist its prosecution, may interfere with the success of the military forces of the United States' because such expressions 'enervate public feeling at home . . . and encourage the success of the enemies of the United States abroad'. He therefore concluded that there 'cannot be the slightest question of the mischievous effects of such agitation' on the war effort. He even agreed with the government's claim that harsh criticism of the war tended to 'promote a mutinous and insubordinate temper among the troops'. He held, however, that in the absence of the 'clearest' statement by Congress 'in the throes of a struggle for the very existence of the state' that it wanted to suppress such criticism, even these grave harms were insufficient to justify the infringement of the 'right to criticize' which is 'normally the privilege of the individual in countries dependent upon free expression of opinion as the ultimate source of authority'. *Masses Publishing Co.* (n. 6 above), 539–40.

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Equally as problematic as the theoretical shortcomings of the *Hammond* decision is the uncertainty that this decision creates.[52] I argued above that there are no obvious principled criteria for distinguishing ideas expressed in public discourse that 'insult' from those that 'offend, shock or disturb'. But even if some theoretical basis for this dichotomy could be found, the distinction would be far too nice for practical administration and is thus likely to invite viewpoint discrimination by law enforcement officials. Nor does this distinction give sufficient guidance to speakers as to which controversial ideas can be safely expressed in public without risking arrest or prosecution. And as I have already discussed, these same problems would render impractical any attempt to distinguish profoundly insulting ideas from ordinarily insulting ones.

A related pragmatic problem is created by the severe limitations on reviewing courts which prevent them from overturning a finding by the trial court that the expression was 'insulting' or that the speaker's conduct was not 'reasonable'. The Divisional Court in *Hammond* treated the magistrates' conclusion that the message on Hammond's sign was 'insulting' within the meaning of section 5 of the Public Order Act as a finding of fact which could be set aside only if a reviewing court concludes the finding was 'perverse'.[53] The court also took a very deferential stance towards the magistrates' finding that Hammond's conduct was not 'reasonable'. Significantly, the court did not itself decide whether Hammond had a right under Article 10 of the ECHR to display his sign. Rather, it found only that the justices 'considered the questions which they were obliged to consider' with respect to this issue and reached a conclusion that was 'open to them' in finding that Hammond's conduct was not 'reasonable'.[54]

[52] Uncertainty is a problem seemingly endemic to English free speech jurisprudence generally, but particularly acute with respect to cases under s. 5 of the Public Order Act. For examples of uncertainty and lack of objectivity in English free speech jurisprudence and the viewpoint discrimination to which this leads, see I. Hare, 'Method and Objectivity in Free Speech Adjudication: Lessons from America' (2005) 54 *Int'l and Comp. L. Q.* 49, 86–87. With respect to s. 5 cases, see Geddis (n. 25 above), 861. Geddis notes that in allowing the appeal of a protestor convicted under that Act for engaging in 'insulting' conduct by burning an American flag near a US army base, the Divisional Court in *Percy* v. *DPP* [2001] EWHC Admin 1125, failed 'to lay down any clear guidelines as to when, or even whether, conduct such as the appellant's ought to be permitted'.

[53] *Hammond* (n. 2 above), para. 32. The culprit here is the decision of the House of Lords in *Cozens* v. *Brutus* [1973] AC 854 which held that the Divisional Court erred by treating the question of whether conduct was 'insulting' under s. 5 of the 1936 Public Order Act as a question of law rather than a question of fact. In his speech, Lord Reid held that the term 'insulting' (as well as the terms 'threatening' and 'abusive') should be given its 'ordinary meaning' and not construed 'as having a specially wide or a specially narrow meaning'. Ibid., 861, 862. Such an approach might be appropriate in s. 5 prosecutions involving conduct that is plainly not within the scope of public discourse such as the activity in the *Cozens*. In that case a protestor interrupted a tennis match at Wimbledon by stepping out on to the court and then blowing a whistle and throwing leaflets before pushing a policeman out of the way and sitting down on the court. (The magistrates had held that this conduct was not 'insulting' within the meaning of the Act.) But where the Act is applied to public discourse such as a protest in a town square dedicated to such public discussion, Lord Reid's confidence that 'free speech [will not] be impaired' (ibid., 862) by treating the finding that the expression is insulting as a virtually unreviewable question of fact is misplaced.

[54] *Hammond* (n. 2 above), para. 33.

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But as Andrew Geddis has observed, '[s]uch continued deference to the magistrates' ruling at trial is inappropriate in a post-HRA [Human Rights Act] era'.[55] As a practical matter, then, despite the court's acknowledgment that suppression of offensive, disturbing and shocking ideas is inconsistent with freedom of expression necessary to a democratic society, the *Hammond* decision and the precedent on which it builds puts the expression of all controversial ideas at risk of punishment under the Public Order Act.

The problem of the uncertainty of the term 'insult' and the unbridled discretion it gives law enforcement officials to suppress speech was recently underscored by the citation of a 15-year-old boy for carrying a sign reading 'Scientology is not a religion, it is a dangerous cult' in peaceful protest on the public sidewalk near the headquarters of the Church of Scientology in London. The boy was told by the police to put down the sign or face arrest or summons. When he refused to do so, the police confiscated his sign and issued a summons charging him with making insulting and abusive statements in violation of the Public Order Act. City of London Chief Superintendent Rob Bastable defended this action, explaining that the 'City of London Police upholds the right to demonstrate lawfully, but we have to balance that with the rights of all sections of the community not to be alarmed, distressed, or harassed as a result of others' actions'. Upon reviewing the case the Crown Prosecution Service dismissed the charge.[56]

4. Object Lessons from the US

The dangers of an uncertain legal standard for deciding whether participants in public discourse may be punished for controversial speech is demonstrated by the 'clear and present danger' test formulated by Justice Oliver Wendell Holmes to deal with convictions under the Espionage Act of protestors against American involvement in World War I for interfering with the war effort.[57] The problem

[55] Geddis (n. 25 above), 867. In Geddis' view, 'following the coming into force of the HRA, the Divisional Court should now conduct its own analysis of the Convention-compatibility of convicting the accused for his or her insulting conduct; rather than, in effect subcontracting this analysis to the trial court and intervening only when the that body has failed to consider all the factors, or has strayed so far as to have acted unreasonably'. Ibid. American appellate courts, including the Supreme Court, have an obligation to review independently factual findings in free speech cases. See *Bose Corp.* v. *Consumers Union* 466 US 485 (1984).

[56] Protest teenager may face charges', *BBC News*, 21 May 2008, <http://news.bbc.co.uk/2/hi/uk_news/england/london/7412002.stm> (last accessed 9 July 2008); 'No charges over Scientology demo', *BBC News*, 23 May 2008, <http://news.bbc.co.uk/2/hi/uk_news/england/london/7416425.stm> (last accessed 9 July 2008). There was a suggestion that the police were particularly vigilant in suppressing insults against Scientology because of the large donations they receive from that organization. See B. Taylor, 'Police officers accepted gifts from Church of Scientology', the *Daily Mail*, 21 November 2006, <http://www.dailymail.co.uk/news/article-417782/Police-officers-accepted-gifts-Church-Scientology.html> (last accessed 9 July 2008).

[57] 'The question in every case is whether the words used are used in such circumstances and are of such a nature as to create a clear and present danger that they will bring about the substantive evils that Congress has a right to prevent.' *Schenck* v. *US* 249 US 47, 52 (1919). *Schenck* is the first

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with this test was that it required the finder of fact, which in a criminal case would typically be a jury, to make guesses about the likely consequences of speech.[58] In contrast, two years earlier in his *Masses* opinion Judge Learned Hand had engaged in a more 'objective' and 'manageable'[59] analysis focusing 'upon the nature of the utterance itself'[60] to determine whether the speech was immune from punishment because 'part of that public opinion which is the final source of government in a democratic state'.[61] As Hand explained in a letter to Harvard law professor Zechariah Chafee:

> I am not in love with Holmsesy's test and the reason is this. Once you admit that the matter is one of degree . . . you give Tomdickandharry, D.J. [district judge], so much latitude that the jig is up at once. [Even] the Nine Elder Statesmen [the Supreme Court] have not shown themselves wholly immune from the "herd instinct" . . . . I own I should prefer a qualitative formula, hard, conventional, difficult to evade.[62]

In hindsight, it is apparent that the focus on the possible harmful consequences of the speech, rather than on whether the speech at issue was a part of the expression by which the people govern, led to the suppression of speech that must be allowed in a free and democratic society. There were over 2,000 convictions under the Espionage Act between 1917 and 1918, with many defendants imprisoned for harshly criticizing American involvement in World War I, including Eugene Debs,[63] who in

significant free speech decision rendered by the Supreme Court. Among other restrictions, the Espionage Act made it a crime to cause refusal of duty in the armed forces or willfully to obstruct the recruitment or enlistment service of the United States.

[58] In criticizing the clear and present danger test, Ernst Freund wrote: '[T]o be permitted to agitate at your own peril, subject to a jury's guessing at motive, tendency and possible effect makes the right of free speech a precarious gift'. E. Freund, *The New Republic*, 3 May 1919, reprinted in H. Kalven, 'Ernst Freund and the First Amendment Tradition: Professor Ernst Freund and Debs v. United States' (1973) 40 *U. Chi. L. Rev.* 235, 240.

[59] 'I do not altogether like the way Justice Holmes put the limitation. I think it is a little more manageable and quite adequate a distinction to say that there is an absolute and objective test to language . . . . I still prefer that which I attempted to state in my first "Masses" opinion, rather than to say that the connection between the words used and the evil at should be "immediate and direct" '. Letter from Learned Hand to Zechariah Chafee, Jr., 3 December 1919, reprinted in G. Gunther, 'Learned Hand and the Origins of Modern First Amendment Doctrine: Some Fragments of History' (1975) 27 *Stan. L. Rev.* 719, 763.

[60] Letter from Learned Hand to Zechariah Chafee, Jr., 8 January 1920, reprinted in Gunther (n. 59 above), 765.

[61] *Masses Publishing Co.* (n. 6 above), 540.

[62] Letter from Learned Hand to Zechariah Chafee, Jr., 2 January 1921, (in n. 59 above), 770.

[63] *Debs* (n. 4 above), per Holmes, J. Holmes later applied the clear and present danger test in a more speech protective way by stressing that impugned expression must present a danger of an 'immediate' evil. See *Abrams* v. *US* 250 US 616 (1919) (Holmes, J. dissenting). Though Holmes insisted that *Schenck* and *Debs* were 'rightly decided' (ibid., 627), it is difficult to see how the expression in *Abrams* presented more of a 'clear and present danger' than did the speech in *Schecnk* or *Debs.* See Weinstein (n. 27 above), 19. As Gerald Gunther has demonstrated, Holmes' greater sensitivity to free speech reflected in his *Abrams* dissent was largely due to criticism from Hand, especially Hand's admonition about the need to pay attention to the values of free speech. See n. 59 above, 741–42. Even after Holmes' *Abrams* dissent, Hand still thought the clear and present danger test inadequate as matter of practical administration. Letter to Chafee in n. 59 above.

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1912 had garnered nearly a million votes as the Socialist candidate for President of the United States.[64]

Speech that vigorously challenges the status quo—whether it be protests against American involvement in World War I, Communist critique of the foundations of the democratic state, or attacks on contemporary orthodoxies such as the commitment to multiculturalism, gender and racial equality, and gay rights—is likely to be given short shrift under vague and indeterminate standards such as whether speech creates a 'clear and present danger' or whether an idea is 'insulting'. Recognition that such uncertain standards are inadequate to the task of protecting speech vigorously challenging dominant opinion led the Supreme Court in 1969 to strengthen and objectify the test for punishing advocacy of violence and other forms of law violation. Influenced by Hand's approach of a half century before,[65] the test announced in *Brandenburg* v. *Ohio* focuses on the objective meaning of the speaker's language. Thus the key question is now not whether the speech is likely to cause harm but whether the expression in question amounts to mere advocacy of law violation, in which case it retains First Amendment protection, or whether it crosses the line to actual incitement of lawlessness, in which case it is eligible for suppression. The 'clear and present danger' test is relegated to supplying prophylactic protection to the harmless inciter by requiring the government to show that even speech that is directed towards inciting imminent lawless conduct, and thus theoretically eligible for suppression, is in fact is likely to produce such conduct.[66] In the following years, the Court more generally 'bright lined' free speech doctrine by subjecting all content-based restriction of public discourse to 'strict scrutiny',[67] a test that almost always leads to the invalidation of the regulation.[68]

While other democracies may also have long traditions of free speech, none, not even the UK, has anywhere near the wealth of experience with judicial protection of this fundamental right as does the US. This experience offers valuable lessons for courts in other democracies on how adequately to protect the

[64] See K. Sullivan and G. Gunther, *Constitutional Law*, 16th edn. (New York: Foundation Press, 2007), 754, 756. See also the Espionage Act cases discussed below, text accompanying n. 92.

[65] For a discussion of earlier cases that adopted Hand's approach as a matter of statutory construction, thus laying the foundation for its adoption in *Brandenburg* as a matter of constitutional law, see Gunther (n. 59 above), 752–55.

[66] 395 US 444, 447–48 (1969). I discuss the import of the *Brandenburg* decision in more detail below.

[67] See *Police Dep't of Chicago* v. *Mosley* 408 US 92, 95 (1972): '[A]bove all else, the First Amendment means that government has no power to restrict expression because of its message, its ideas, its subject matter, or its content'; *Boos* v. *Barry* 485 US 312, 321 (1988): '[Our] cases indicate that . . . a content-based restriction on political speech in a public forum . . . must be subjected to the most exacting scrutiny. Thus, we have required the State to show that the "regulation is necessary to serve a compelling state interest and that it is narrowly drawn to achieve that end" '. For a discussion of the meaning of 'content-based' regulation as that term is used in American free speech doctrine, see Hare (n. 52 above), 50–54; Weinstein (n. 27 above), 35–38.

[68] See Weinstein, ibid, 39.

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expression of controversial opinions against the reliable tendency of society to suppress ideas that offend dominant opinion. By failing to define a core area of speech essential to democratic government and then rigorously protecting this expression, English courts are repeating a mistake the United States Supreme Court made in the first half of the twentieth century that I have just described. To avoid this pitfall, English courts should focus on the nature of the speech in question to determine whether by virtue of its subject matter and setting, it is expression which by 'any latitude of interpretation' is 'part of that public opinion which is the final source of government in a democratic state'.[69] If it is, then this expression should be deemed immune from punishment unless some truly extraordinary circumstance requires its suppression. And in assessing whether such extraordinary circumstances are present, courts in other democracies should heed another lesson from the American experience: what at the time seemed like compelling reasons for suppressing speech were in retrospect recognized as inadequate. In looking back at the cases decided under the old clear-and-present danger test, Justice William O. Douglas observed that the danger presented by the speech in those cases was 'made serious only by judges so wedded to the status quo that critical analysis made them nervous'.[70]

Unlike their American colleagues, English judges do not have the power to invalidate legislation as unconstitutional. But they do have the authority to construe an Act of Parliament narrowly to prevent it from infringing the common law right of free speech.[71] Moreover, under the Human Rights Act 1998, English courts have a duty to interpret legislation as far as possible to be compatible with rights guaranteed under the ECHR.[72] To prevent the Public Order Act from

[69] *Masses Publishing Co.* (n. 6 above), 540.

[70] *Brandenburg* (n. 8 above), 454 (concurring opinion). Or as Learned Hand observed: '[W]hat seems [an] "immediate and direct" [threat of danger] today may seem very remote the next year even though the circumstances surrounding the utterance be unchanged'. Letter to Chafee (n. 62 above), 770.

[71] 'The fundamental right of free expression has been recognized at common law for many years'. *R.* v. *Shayler* (n. 13 above), para. 21 (Lord Bingham). See also Barendt (n. 24 above), 40–41. In this regard, it is interesting to note that in his *Masses* decision Judge Hand did not rely on the First Amendment but rather narrowly construed the Espionage Act in light of the core democratic principles implicated in that case. See *Masses Publishing Co.*, (n. 6 above), 538, 540.

[72] It is, however, far from certain that Hammond's expression would find protection under the ECtHR Article 10 jurisprudence. As Ivan Hare observes, the Strasbourg's court's legal doctrines 'have effectively prevented the Convention from safeguarding extreme speech and, as consequence, from providing meaningful protection to a robust concept of free speech in general terms', especially when speech challenges anti-discrimination norms. 'Extreme Speech under International and Regional Legal Standards', this volume. Although there is still some doubt on the issue, it would apparently be improper for English courts to interpret Article 10 independently as providing greater protection for the speech in question than is provided by ECtHR jurisprudence. While English courts are not obliged to follow ECtHR decisions as strictly binding precedent, 'in the absence of special circumstances our courts should follow any clear and constant jurisprudence from the Strasbourg court . . . .' *Animal Defenders International* v. *Secretary of State for Culture, Media and Sport* [2008] UKHL 15, para. 37 (Lord Bingham). Accordingly, while it is 'of course open to member states to provide for rights more generous than those guaranteed by the Convention . . . such provision should not be the product of interpretation of the Convention by national courts, since the meaning of the Convention should be uniform throughout the states party to it. The duty of national courts is to keep pace with the

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violating the core free speech right of democratic participation, when dealing with expression that is part of public discourse, courts should, at minimum, construe the term 'insulting' (as well as the term 'abusive') as applying only to expression that employs epithets or profanity to refer to an individual or group of individuals. An even better course might be to borrow a page from the US Supreme Court's 'fighting words' jurisprudence and construe these terms as having no application whatsoever to public discourse but only to face-to-face insults or abuse directed at a particular person or persons.[73] Not only would such an approach protect the right of dissenters to express controversial ideas, it would bring the operation of the Public Order Act back in line with the purpose for which it was primarily intended: 'to deal with hooligans who, say, pester and alarm people late at night'.[74] But whatever the precise solution, the Public Order Act's prohibition of 'abusive' or 'insulting' speech should be carefully confined in its application to public discourse.

5. Another Core Breach?: *Norwood* v. *DPP*

A second case suggesting that UK free speech doctrine is not adequate to the task of protecting the dissent necessary to any democracy is *Norwood* v. *DPP*. Decided by the Divisional Court just six months before *Hammond*, it too involved a prosecution for insulting speech under the Public Order Act.

(i) Facts and Divisional Court Decision

In November 2001, Mark Anthony Norwood placed a poster in the window of his flat located in a small rural town in Shropshire bearing the words: 'Islam out of Britain' and 'Protect the British people'. These slogans were superimposed on a reproduction of a photograph of the World Trade Center in flames and a crescent and star surrounded by a prohibition sign. Norwood was a regional organizer of the British National Party (BNP) which had distributed the poster to its members. In January 2002, a member of the public saw the poster in Norwood's window and complained to the police, who visited his flat and removed the poster.[75]

Strasbourg jurisprudence as it evolves over time: no more, but certainly no less.' *R (Ullah)* v. *Special Adjudicator* [2004] UKHL 26, para. 20 (Lord Bingham). But see Lord Scott's speech in *Animal Defenders*, above, paras. 44-45 arguing that English courts have greater authority to interpret Convention independently from Strasbourg jurisprudence than stated by Lord Bingham.

[73] Such protection of public discourse could, alternatively, be accomplished by holding that unlike other forms of insulting or abusive speech such expression is 'reasonable'. Because Hammond had died before he could appeal to the ECtHR, the Court declared the application by his heirs inadmissible for lack of standing. *Fairfield* v. *UK*, App. No. 24790/04, 8 March 2005.

[74] Barendt (n. 24 above), 300. See also Geddis (n. 25 above), 872: '[T]he problem caused by individual dissenters is not the primary mischief targeted by s. 5. Their expression is only covered because it falls within the ambit of broad statutory language intended to deal with more blatant forms of anti-social conduct . . . '.

[75] *Norwood* (n. 3 above), paras. 5–8.

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Norwood was charged under section 5 of the Public Order Act 1986 for making 'abusive' and 'insulting' statements likely to cause 'harassment, alarm, or distress' to another person. The prosecution further charged that the display of the poster was subject to the increased penalty because the violation was 'racially or religiously aggravated' under the sections 28 and 31 of the Crime and Disorder Act 1998 in that the offense was 'motivated (wholly or partly) by hostility towards members of a racial or religious group based on their membership in that group'.[76]

At trial in the Magistrates Court, the complaining witness testified that he had felt 'quite sick' when he saw the poster and thought the poster would cause offence. One police officer testified that he considered the poster to be 'in bad taste and inflammatory', while another stated that having worked in London, he knew that this kind of material could stir up distress and 'racial feeling'. There was no evidence that any Muslim had seen the sign. The prosecution argued that the message of the poster was threatening, abusive or insulting because it suggested that Muslims were not welcome in the UK. Norwood and the Chairman of the BNP testified that the poster referred to Muslim extremism in light of the 9/11 attacks and that it was a 'slogan against creeping Islamification'. The District Judge convicted Norwood and fined him £300, finding that the poster was abusive and insulting to Islam and to the followers of that religion; was likely to cause harassment, alarm, and distress; and was religiously motivated.[77]

The Divisional Court dismissed Norwood's appeal, finding all of the statutory elements of the offence and its aggravation had been adequately proved. Addressing the free speech issues presented by the case, Auld LJ explained that the defence under section 5(3) that the conduct was objectively reasonable necessarily includes consideration of the right to freedom of expression under Article 10 of the ECHR.[78] Drawing on the analysis of Hallet J in *Percy* v. *DPP*,[79] the Court explained that whether Norwood's conduct was objectively reasonable depended upon 'whether the accused's conduct went beyond legitimate protest and whether the behaviour had not formed part of an open expression of opinion on a matter of public interest, but had become disproportionate and unreasonable'.[80] So stated, portions of this test offer a basis for constructing doctrine that would adequately protect the core democratic right of free speech we are considering here. Particularly promising is the focus on whether or not 'the expression formed part of an open expression of opinion on a matter of public interest'.[81]

[76] Ibid., paras. 1–4.
[77] Ibid., paras. 9–13.
[78] Ibid., para. 35.
[79] N. 52 above.
[80] *Norwood* (n. 3 above), para. 37.
[81] More problematic is the inquiry whether the expression had become 'disproportionate and unreasonable'. Theoretical difficulties aside, 'beyond legitimate protest' and the 'disproportionate and unreasonable' standards are as a practical matter far too vague to supply would-be speakers, law enforcement officials or lower courts with the certainty needed to know what speech people have a right to engage in.

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But any promise this formulation might have had for protecting core free speech rights from suppression under the Public Order Act was quickly dashed by the following qualification: 'If the prosecution has proved, as it must to obtain a conviction, that an accused's conduct was insulting and that he intended it to be, or was aware that it might be so, it would in most cases follow that his conduct was objectively unreasonable.' While the Court allows that it might be possible that the findings necessary to make out violation of section 5(1) would not preclude a defence of objective reasonableness under section 5(3), it emphasizes that '[s]uch circumstances are difficult to envision'. The half a loaf of free speech protection that the court momentarily holds out is thus quickly withdrawn thereby effectively nullifying the potential of section 5(3) to provide any real protection to insulting speech that is part of public discourse.

As with *Hammond*, it is difficult to believe that the court meant to embrace the principle that the expression of an insulting idea in public discourse goes beyond 'legitimate protest' just because the speaker is aware that someone who hears the speech is likely to be insulted. Surely, an anti-war protestor would be aware that President George Bush might be insulted by a sign that 'Bush Lied and Our Soldiers Died' and indeed, may well intend that this expression should insult Bush. But just as surely that fact does not render this expression 'beyond legitimate protest'. Or suppose in the incident described above, the CPS had decided to prosecute the 15-year-old boy cited for displaying a sign in the street in front of the headquarters of the Church of Scientology declaring that 'Scientology is not a religion, it is a dangerous cult'. Would the court have really upheld his conviction against a free speech defence if the lower court found that the sign was in fact insulting to scientologists and the protestor was aware that it was likely to be insulting to some scientologists who saw the sign? Surely not. But given the broad statement in *Hammond* and *Norwood* that insulting speech even in public discourse is not legitimate protest, what principled basis would the court have to disallow these convictions?

By placing the sign in his window, Norwood was expressing his view about what should be done about the then recent attack on the World Trade Center by Islamic militants, and was utilizing a medium of expression apparently open to individuals in the UK to express their views.[82] This expression would thus seem to qualify as core public discourse or as the court put it, 'part of an open expression of opinion on a matter of public interest'. As just demonstrated, it is implausible that the court meant to cast this expression 'beyond legitimate protest' just because it was insulting. Nor will it do to argue that speech is no legitimate part of public discourse merely because it insults people because of their religion.

[82] Compare *City of Ladue* v. *Gilleo* 512 US 43, 47 (1994) where the US Supreme Court, in invalidating a city's nearly total ban on all residential signs, refers to the practice of placing political signs in the windows of one's home as a 'venerable means of communication that is both unique and important'.

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Like expression that insults on the basis of sexual orientation, there is no obvious basis to conclude that religiously-based insults are categorically worse than other insulting ideas that pervade public discourse in multicultural democracies. More significantly, even if such insults could on some principled and relevant basis be considered more egregious than other types of insulting ideas in public discourse, the interest in not being insulted on the basis of one's religion would still not be great enough to justify preventing people from expressing these ideas, as Parliament recognized recently by passing the Religious Hatred Act. Thus in outlawing threatening speech intended to stir up religious hatred, Parliament recognized that speech that merely insults people on the basis of their religion will often be part of legitimate public debate in a free and democratic society and thus expressly exempted such expression from the scope of the law.[83] Still, unlike the poster in *Hammond*, there is at least an argument, though a very problematic one, that Norwood's expression did indeed transcend the bounds of legitimate protest in a democracy.

(ii) Excluding Anti-Democratic Speech from Public Discourse

It can be argued that advocacy of outcomes inconsistent with core democratic precepts should not be considered part of the highly protected speech by which people in a democracy govern themselves.[84] This argument is premised on the view that the basic precepts of democracy permit—or even require—a democratic state to prevent the institution of any substantive arrangement radically inconsistent with precepts of democracy. Such radically undemocratic outcomes may be resisted consistent with democracy even if brought about by democratic means such as a fair election or a constitutional amendment.[85] Thus, whatever other objections might be raised, it would hardly seem to betray democracy for an incumbent democratic government to refuse to recognize a newly elected

[83] 'Nothing in this Part shall be read or given effect in a way which prohibits or restricts discussion, criticism, or expression of antipathy, dislike, ridicule, insult, or abuse of particular religions or the beliefs of its adherents . . . .' Racial and Religious Hatred Act 2006, s. 29J.

[84] I have previously considered this argument in 'Hate Speech, Viewpoint Neutrality, and the American Concept of Democracy' in T. Hensley (ed.) *The Boundaries of Freedom of Expression & Order in American Democracy* (Kent, OH: Kent UP, 2001), 161–66.

[85] The ECtHR adopted precisely this view in upholding Turkey's banning of a party because it sought to use the political process to institute an anti-democratic theocracy. See *Refah Partisi (The Welfare Party)* v. *Turkey*, (2003) 37 EHRR 1, para. 98: 'A political party may promote a change in the law or the legal and constitutional structures of the State on two conditions: first, the means used to that end must be legal and democratic; second the change proposed must itself be compatible with fundamental democratic principles.' See also *Refah Partisi (Welfare Party)* v. *Turkey*, (2002) (Chambers Opinion) 35 EHRR 3, para. 43: 'There can be no democracy where the people of a State, even by majority decision, waive their legislation and judicial powers in favour of an entity which is not responsible to the people it governs, whether it is secular or religious'; Barendt (n. 24 above), 169–70: 'the argument from democracy, which . . . provides the best explanation for the protection of speech and also explains the preferred status for political speech, hardly warrants the application of these guarantees to discourse posing a serious threat to democracy itself.'

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government with a mandate to abolish the democratic state and replace it with a theocracy, absolute monarchy, or the dictatorship of the proletariat.[86] Similarly, it would seem consistent with or even required by the basic precepts of democracy for a democratic state to refuse to implement a democratically enacted provision which, though not abolishing democracy *in toto*, is nonetheless radically inconsistent with some basic premise of democracy such as the right of each individual to participate in the political process. Thus it would not be undemocratic for a democracy to refuse to give effect to a constitutional amendment or referendum stripping certain citizens of the right to vote because of their race or religion or on any other basis that does not legitimately justify depriving individuals of their right to participate in the political process.

If certain substantive outcomes can be taken off the table because they are not within the power of the people in a democracy to implement consistent with core democratic precepts, it can be argued that express advocacy of these outcomes is not within the public discourse by which people in a democracy decide issues within the scope of their democratic authority. Of course, other possible free speech values, such as the search for truth or individual autonomy and self-realization would likely be impaired by the exclusion of even radically anti-democratic speech from public discourse. And there are strong practical reasons for permitting the advocacy of even radically anti-democratic speech: The line between anti-democratic speech and speech that otherwise radically challenges the status quo is far too slippery for practical administration. Still, as a theoretical matter, it is at least arguable that express advocacy of policies antithetical to democracy is not a legitimate part of the public discourse by which people govern themselves and thus may be suppressed without violating the core democratic free speech principle under consideration in this chapter.[87]

[86] The issue of whether a democracy may, consistently with basic democratic precepts, refuse to implement radically anti-democratic provisions that have the support of a majority of the people raises a different question than whether such a refusal would offend popular sovereignty, a question briefly considered above in the text accompanying n. 15. For unlike naked popular sovereignty, even the thin concept of democracy we are considering here has an individual as well as a collective rights basis that prevents the majority from depriving any individual of the right to participate in the political process.

[87] A strong argument that such expression is in principle entitled to protection under a democracy rationale is that excluding people from expressing even a radical anti-democratic view in public discourse undermines the legitimating function of free speech. On this view, even someone advocating an outcome impossible in a democratic society benefits from the legitimation that participating in the process of democratic self-governance instils. Thus excluding someone from arguing that an undemocratic, religious form of government such as sharia should be adopted makes the imposition of a secular, nondemocratic state on that speaker illegitimate. But even if this view is correct, it does not necessarily follow that exclusion of someone advocating a position impossible in a democratic society undermines legitimacy to the same extent as does excluding someone from advocating an outcome that is within the people's democratic authority. So even if suppression of radically anti-democratic speech does implicate political legitimacy, it still might not violate the core democratic precept we are investigating in this chapter. This is a difficult question that would require a more extensive investigation of political legitimacy and its relationship to free speech than is possible in this essay. But even if express advocacy of radically antidemocratic discourse is not entitled to the same level of protection as advocacy of substantive outcomes that are within the peoples'

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So does the message on Norwood's sign constitute radically anti-democratic advocacy that can arguably be excluded from public discourse consistent with this core democratic precept? Like many political slogans that appeal more to the emotions than to the intellect, it is not clear what 'Islam out of Britain—Protect the British People' means. As noted above, Norwood and the chairman of the BNP testified that it was a warning of the danger that 'Muslim extremism' and 'increasing Islamification' posed to Britain. Given the unmodified reference to Islam, this interpretation could reasonably be rejected. Rather, the poster would seem to express a more general condemnation of Islam in general and a warning that Islamic ideas and practices are a threat to the British way of life. Such a message may be offensive and even insulting to moderate Muslims and (to use the Court's term) to other 'right-thinking member[s] of society'. Nonetheless, the poster still expresses ideas relevant to matters within the people's collective decision-making authority, including immigration policy, whether there is a role for sharia in Britain, and the attitude state schools and other public institutions should adopt towards various Muslim customs, including the veiling of women and girls.[88] It is thus a perspective that, despite the offense or insult it may cause, must be allowed to be expressed in a democratic society. So if by placing this poster in his window Norwood meant to argue that Islam was a religion dangerous to the British way of life, punishing him for this expression would seem to violate the core democratic right to free speech.

The Divisional Court, however, interpreted the poster as conveying a more sinister message. In the court's view, the message did not merely condemn Islam as a religion but was rather an 'attack on all Muslims in this country, urging all who read it that followers of the Islamic religion here should be removed from it and warning that their presence here was a threat or a danger to the British people'.[89] Expelling an entire class of citizens from their country because of their beliefs, religious or otherwise, is inconsistent with the core democratic precept of free and equal participation in the political process that generates the core democratic free speech principle. Because such a substantive outcome is deeply inconsistent with this core democratic precept, it is, as we have seen, at least arguable that express advocacy of such an outcome can be deemed no legitimate part of the speech by which people in a democracy govern themselves.

democratic authority, the legitimacy concerns arguably implicated by suppression of such speech suggest that it is in principle entitled to some substantial degree of protection. See Barendt (n. 24 above), 169–70, who writes that anti-democratic advocacy speech is properly suppressed only if it 'really threatens the stability of the state and its democratic order'. See also J. Rawls, *A Theory of Justice* (Cambridge, MA: Harvard UP, 1971), 219: 'while an intolerant sect does not itself have title to complain of intolerance, its freedom should be restricted only when the tolerant sincerely and with reason believe that their own security and that of the institutions of liberty are in danger. The tolerant should curb the intolerant only in this case.'

[88] See J. Finnis, 'Endorsing Discrimination Between Faiths: A Case of Extreme Speech', this volume.

[89] *Norwood* (n. 3 above), para. 33.

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So if Norwood's poster had expressly stated or unmistakably implied that all Muslims should be expelled from Britain because their religion poses a danger to society, punishing him for displaying the poster in public might not violate the core democratic free speech norm we are considering.[90] But the actual poster contains no such statement. Indeed, it does not say '*Muslims* out of Britain' but rather '*Islam* out of Britain'. The poster is thus readily susceptible to the interpretation that the influence of Islamic ideas and customs in Britain is dangerous, a view that no matter how offensive falls well short of advocating a radically anti-democratic outcome.[91] Thus from the standpoint of protecting the right of dissent necessary to any democracy, the *Norwood* decision is troubling.

(iii) The Perils of Interpreting Ambiguous Political Rhetoric

The *Norwood* Court's uncharitable interpretation of ambiguous political rhetoric is reminiscent of the United States Supreme Court's response to radical anti-war speech when the Court first started to develop free speech doctrine at the beginning of the twentieth century. During World War I, the Court was faced with several cases involving provocative political rhetoric that could be fairly construed either as mere condemnation of America's involvement in that war or as urging men to refuse service in the armed forces in violation of the Espionage Act. In almost every case, the Court interpreted language harshly criticizing the war or admiring the courage of those who were willing to go to

[90] Even if the poster could be fairly interpreted as advocating a radically anti-democratic outcome and thus could arguably be legitimately excluded from public discourse and the rigorous protection that such expression must be provided in a democratic society, it does not follow that it is entitled to no protection. Rather, it might be entitled to a substantial degree of protection because its suppression would impair legitimacy (see n. 87 above) or some free speech value other than core democratic right of political participation. And even if the suppression of Norwood's speech would not in principle violate any free speech value there are, as discussed in the text, serious pragmatic difficulties raised by suppressing even radically antidemocratic speech. So on the assumption that Norwood's poster actually advocated the removal of all Muslims from Britain, the question would then become whether the interest in protecting people from encountering insulting ideas, and the promotion of religious tolerance, together with combating what is at present the extremely remote danger that this expression might lead to the expulsion of Muslims, is sufficient grounds for suppressing this arguably non-core speech.

[91] Official BNP policy includes urging the prevention of any further immigration of Muslims to Britain and providing 'firm but voluntary incentives for [Muslim] immigrants and their descendants to return home'. See Rebuliding British Democracy: British National Party General Election 2005 Manifesto, 48 <http://news.bbc.co.uk/1/shared/bsp/hi/pdfs/BNP_uk_manifesto.pdf> (last accessed 11 July 2008). The descendants of Muslim immigrants obviously include British citizens. Adoption of a governmental programme offering even 'voluntary incentives' for the expatriation of citizens on account of their religion would seem radically inconsistent with basic democratic precepts and thus express advocacy of such a programme is arguably not a legitimate part of public discourse. The court, however, does not rely on this or any other official BNP policy in interpreting the poster as calling for the expulsion of Muslims from the UK. In any event, attributing agreement with (or even knowledge of all) party policies to rank and file members or even lower echelon leaders is extremely problematic. See *Whitney* v. *California* 274 US 357 (1927).

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prison rather than be drafted as intending to urge draft resistance in violation of the Act.[92]

As discussed above, it is problematic enough as a theoretical matter to deem advocacy of radically anti-democratic policies as 'beyond legitimate protest' and thus undeserving of the strong protection afforded public discourse. But even if it is theoretically justifiable to exclude such speech from public discourse, pragmatic considerations dictate that only expression that both directly and unmistakably advocates radical anti-democratic social change should be cast beyond the pale of legitimate debate. As the Espionage cases suggest, allowing prosecutors, juries, and lower courts to construe ambiguous language as calling for some pernicious policy, a process that will ordinarily require the finder of fact to speculate about the speaker's motive in making the utterance, is a formula both for viewpoint discrimination and the suppression of legitimate dissent.[93] To obviate this problem with respect to utterances that the government claims go beyond legitimate criticism of the laws to advocacy of their violation, the US Supreme Court belatedly adopted Hand's approach of eschewing motive inquiry and focusing instead on an 'objective' analysis of the impugned language.[94] Such an objective approach is even more of a necessity in cases in which government tries to suppress speech because of its anti-democratic viewpoint.

Norwood, it is true, was a regional organizer of the BNP, an organization whose official policies are, at best, just this side of the line separating legitimate and illegitimate political parties in a democratic society and whose unofficial policies and actual conduct may well cross that line.[95] But many of those convicted under the Espionage Act for condemning the American involvement in World War I or under the Smith Act during the McCarthy era were also members of political parties whose democratic *bona fides* could be

[92] *Schenck*, n. 57 above; *Frohwerk* v. *US* 249 US 204 (1919); *Debs*, n. 4 above; *Abrams*, n. 63 above.

[93] In this regard it is instructive to note that in criticizing the 'clear and present danger' test, Learned Hand was concerned not only with the uncertainty inherent in the need to guess about the consequences of the speech, as discussed in text accompanying notes 59 to 62. In addition, he objected because the speaker's intent was a key element of the test and thus 'exposes all who discuss heated questions to an inquiry before a jury as to their purposes. That inquiry necessarily is of the widest scope and if their general attitude is singular and intransigent, my own belief is that a jury is an insufficient protection. I think it is precisely at those times when alone the freedom of speech becomes important as an institution, that the protection of a jury on such an issue is illusory.' Letter to Chafee, n. 60 above, 766. See also T. M. Scanlon, 'Freedom of Expression and Categories of Expression' (1979) 40 *U. Pitt. L. Rev.* 519, 546, who aptly observes that 'distinctions based on participant intent . . . are nearly always suspect'; *FEC* v. *Wisconsin Right to Life, Inc.* 127 SCt 2652, 2665 (2007) (plurality opinion per Robert, CJ), finding that the use of an 'intent-based test' to determine whether or not a political advertisement is legal would 'chill core political speech'.

[94] See discussion below, text accompanying notes 101 to 103.

[95] See S. Silver, 'Booted and suited: The BNP's nazism', <http://www.stopthebnp.org.uk/index.php?location=election&link=BNP36.htm>, (last accessed 14 July 2008), documenting, for example, incidents of BNP supporters violently attacking anti-racist demonstrators.

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doubted.[96] The immediate result of these American cases may have been the conviction of some unsavoury characters who in their hearts wanted to implement anti-democratic policies. But the legacy of these cases was free speech doctrine that provided inadequate protection to legitimate social protest in the decades that followed.[97]

Similarly, though it might not seem immediately objectionable that the Divisional Court gave Norwood's ambiguous expression a particularly malignant interpretation, there is nothing in the court's opinion to limit it to expression by members of extremist organizations. As a result, the *Norwood* decision puts in jeopardy any political statement that can be loosely construed as urging some deeply anti-democratic outcome.[98]

6. Speech at the Periphery of the Core and the Strategy of Overprotection

To round out this discussion of the core right of free speech that must be respected in any democracy, I want to identify several categories of speech that are beyond this democratic core (or like radically anti-democratic speech arguably not within it), but which may nevertheless require protection for pragmatic reasons.

[96] *Abrams*, n. 63 above; *Dennis*, n. 5 above.

[97] For instance, in 1923 an organizer for the Industrial Workers of the World (IWW) was convicted under a criminal syndicalism statute for advocating criminal activity for political ends. The evidence of such criminal syndicalism was the statement in the preamble to organizations constitution that between the working class and the employing class 'a struggle must go on until the workers of the World organize as a class, take possession of the earth, and the machinery of production and abolish the wage system'. The Kansas Supreme Court affirmed the conviction but the US Supreme Court, edging slightly nearer to Hand's position in the *Masses* case, held this language insufficient to establish that the defendant advocated illegal conduct. *Fiske* v. *Kansas* 274 US 380 (1927). As late as 1966, a federal court upheld the Georgia State Legislature's refusal to seat Julian Bond, a black anti-war activist, for making statements such as he 'admired the courage of people who burned their draft cards' and for adhering to the statement 'We are in sympathy with, and support the men in this country who are unwilling to respond to a military draft.' In a significant step towards formally adopting Hand's 'objective' approach three years later in *Brandenburg*, the Supreme Court held that legislature's exclusion of Bond for this reason violated his First Amendment rights. *Bond* v. *Floyd* 385 US 116 (1966). For a description of the unsatisfactory state of free speech jurisprudence in the early 1960s and the Warren Court's subsequent modification of doctrine to protect dissent that vehemently challenged segregation to the benefit of freedom of expression generally, see H. Kalven, *The Negro and the First Amendment* (Columbus, OH: The Ohio State UP, 1965). Kalven famously observed that blacks 'won back for us freedoms that the Communists seemed to have lost for us'. Ibid., 6.

[98] The ECtHR held Norwood's application inadmissible. Agreeing with the Divisional Court's assessment that the poster 'amounted to public of attack on all Muslims in the United Kingdom', the Court held such a 'vehement attack against a religious group, linking the group as a whole with a grave act of terrorism, is incompatible with the values proclaimed and guaranteed by the Convention, notably tolerance, social peace and non-discrimination'. *Norwood* v. *UK*, Appl. No. 23131/03, 16 November 2004. For a trenchant critique of this unsatisfactory rationale for excluding speech from the protection of Article 10 of the Convention, see I. Hare, 'Crosses, Crescents and Sacred Cows: Criminalising Incitement to Religious Hatred' (2006) *Pub. L.* 521, 530–31.

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(i) 'Fighting Words'

I have already mentioned that so called 'fighting words'—abusive epithets directed to others in a face-to-face confrontation—are not part of the core speech required in any democracy and how the United States Supreme Court formally excluded such expression from the American free speech principle. As Robert Post has perceptively observed, in excluding fighting words from First Amendment coverage, the Court was trying to distinguish a 'private fracas' from a 'public debate'.[99] But as with most legal dichotomies, this distinction becomes blurry at the margins. So while the use of personally abusive language between two people fighting over a parking space is plainly not part of the speech by which we govern ourselves, it is not so clear that face-to-face abuse can be punished when used in a heated political debate, or even in a personal confrontation with political overtones, without implicating the core right of political participation we are considering. During the turbulent civil rights and Vietnam war eras, the US Supreme Court employed on an ad hoc basis various techniques to provide protection to the use of personally directed insults in a political context but without overruling or even formally limiting its 'fighting words' doctrine.[100]

(ii) Advocacy of Law Violation

To provide prophylaxis to the core democratic free speech right we are considering, the United States Supreme Court has extended protection to advocacy of law violation when it occurs as part of a critique of social or political conditions. As Learned Hand explained in his *Masses* opinion, and was implicit in the Court's Espionage Act cases just considered, direct and explicit advocacy of law violation 'cannot by any latitude of interpretation be a part of that public opinion which is the final source of government in a democratic state'.[101] But those charged with advocating law violation in these cases did not do so in a vacuum, but rather as part of a vehement critique of social or political conditions, including condemnation of existing laws. And as the Court belatedly came to realize, 'where particular speech falls close to the line separating the lawful and the unlawful, the possibility of mistaken fact-finding . . . will create the danger that the legitimate utterance will be penalized'. This danger, in turn, will cause critics to 'steer far wider of the unlawful zone'[102] than is acceptable in a free and democratic society.

[99] Post (n. 22 above), 175.
[100] See, eg *Gooding* v. *Wilson* 405 US 518 (1972); *Rosenfeld* v. *New Jersey* 408 US 901 (1972); *Lewis* v. *City of New Orleans* 408 US 913 (1972); *Brown* v. *Oklahoma* 408 US 914 (1972). See also *Terminello* v. *Chicago* 337 US 1 (1949); *City of Houston* v. *Hill* 482 US 451 (1987).
[101] *Masses Publishing Co.* (n. 6 above), 540.
[102] *Speiser* v. *Randall* 357 US 513, 526 (1958).

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Accordingly, in *Brandenburg* v. *Ohio*, the Court created breathing space for the exercise of core free speech rights. It held that mere advocacy of law violation forming part of social and political criticism was protected by the First Amendment. To be punishable advocacy of law violation must not just advocate violation of the law in the abstract or at some indefinite future time but must be 'directed to inciting or producing imminent lawless action' and, in addition, must be 'likely to produce such action'.[103]

Such strategic protection of speech advocating serious law violation does not, to my knowledge, exist in any other democracy, including the UK, as a young Muslim protestor recently discovered. In February, 2006, Mizanur Rahman took part in a demonstration in London protesting the publication of cartoons satirizing the prophet Mohammed in a Danish newspaper. He carried a placard saying 'Behead those who insult Islam' and 'Annihilate those who insult Islam' and shouted in a megaphone: 'We don't want to see [British troops] in Baghdad, in Iraq any more. We want to see them coming home in body bags, we want to see their blood running in the streets of Baghdad, we want to see their blood running in Fallujah. We want to see the Mujahideen shoot down their planes the way we shoot down birds, we want to see their tanks burn in the way we burn their flags.'[104] At trial Rahman apologized to the court, claimed had got 'carried away' in front of the crowd and said he was a 'nobody' whose words no one would take seriously.[105] He was convicted of stirring up racial hatred in violation of the Public Order Act and solicitation of murder and sentenced to 6 years in prison.[106]

The statements on Rahman's placard directly advocated murder and those shouted through the megaphone can reasonably be construed as doing so. As such they can in principle be excluded from public discourse and subject to suppression or punishment without infringing the core democratic right to political participation. Still, as the US experience suggests, punishing mere advocacy of law violation that has no quality of incitement and which is unlikely to cause serious imminent harm may not leave enough 'breathing room' for vehement yet legitimate criticism of the status quo. And severe punishment, such as the six-year sentence in Rahman's case, will increase the potential for 'chilling' core political speech.

[103] *Brandenburg* (n. 8 above), 447–48. See above, text accompanying notes 65–66.

[104] 'Protestor "called for beheadings" ', *BBC News*, 3 November 2006, <http://news.bbc.co.uk/1/hi/uk/6113874.stm> (last accessed 23 July 2008).

[105] R. Alleyne, 'Cartoon protestor guilty of race hate', *The Daily Telegraph*, 10 November 2006, <http://www.telegraph.co.uk/news/uknews/1533762/Cartoon-protester-guilty-of-race-hate.html> (last accessed 23 July 2008).

[106] P. Walker, 'Man guilty of inciting murder at cartoon protest', *The Guardian*, 5 July 2007. <http://www.guardian.co.uk/world/2007/jul/05/muhammadcartoons.uk> (last accessed 23 July 2008).

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Because no one in principle has a fundamental right to advocate law violation,[107] it is appropriate in determining what degree of protection, if any, such expression should be given to weigh the benefits of such protection against its costs. This imprecise process will depend heavily on judicial intuition and will inevitably involve culturally dependent questions such as how much legitimate social criticism will likely be deterred in the absence of some degree of protection or, on the other side of the scale, the extent to which such protection will impair respect for the rule of law or might even contribute to the possibility that the crime being advocated will be committed. But in deciding whether or not to extend protection to advocacy of law violation courts should be careful not confuse deep offence with profound danger.

(iii) Expression Offending Civility Norms

I have already argued that any attempt to impose civility norms on public discourse by excluding offensive or insulting *ideas* is both theoretically and pragmatically inconsistent with the core democratic free speech right of each individual to participate in the formation of public opinion. The question I want to consider now is whether excluding expression from this discourse because the *manner* or *form* of the expression offends civility norms would similarly breach this core free speech right. To examine this question, let us once again consider the speech of BNP members which, if good for nothing else, at least provides us with textbook examples of expression that tests the limits of 'legitimate protest' in a democratic society.

In a speech to supporters at a Yorkshire pub, BNP chairman Nick Griffin, referred to Islam as a 'wicked, vicious faith' that 'has expanded from a handful of cranky lunatics about 1,300 years ago'. He further claimed that white society was turning into a 'multi-racial hell hole'. Mark Collett, a party activist, compared asylum seekers to 'cockroaches', claiming that 'they're doing what cockroaches do because cockroaches can't help what they do, they just do it, like cats miaow and dogs bark'. He proclaimed: 'Let's show these ethnics the door in 2004'. For making these and other statements, Griffin and Collett were charged with stirring up racial hatred in violation of the Public Order Act of 1986, but after two jury trials were acquitted of all charges.[108]

The prosecution seems to have conceded that Griffin and Collett would have had a right to criticize Islam and to urge even ethnically based immigration reform

[107] Or at least not one founded on participation in the democratic process. For an admirable attempt to find such a right in the individual autonomy interests of the audience, see T. M. Scanlon, 'A Theory of Freedom of Expression' (1972) 1 *Phil. & Pub. Affairs* 204. Scanlon repudiated this theory several years later in Scanlon, n. 93 above.

[108] 'BNP leader "said Islam is wicked"', *BBC News*, 3 November 2006, <http://news.bbc.co.uk/2/hi/uk_news/england/bradford/6113040.stm> (last accessed 9 July 2008); 'BNP leader cleared of race hate', *BBC News*, 10 November 2006, <http://news.bbc.co.uk/2/hi/uk_news/england/bradford/6135060.stm> (last accessed 9 July 2008).

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in a calm, reasoned tone. It argued, however, that the speech in this case was beyond the pale of legitimate discourse because, rather than contributing to the debate on multiculturalism, the statements amounted to 'little more than crude racist rants'.[109] What apparently pushed this expression beyond the realm of legitimate public debate in the prosecution's view was not 'disapproval of another race' but doing so in 'such strong terms'.[110] On this view it would have been perfectly legal if instead of saying that Islam was 'wicked, vicious faith', Griffin had taken a page from Robert Spencer's controversial book, *Islam Unveiled*, and charged that:

> It would be too pessimistic to say that there are no peaceful strains of Islam, but it would be imprudent to ignore the fact that deeply imbedded in the central documents of the religion is an all-encompassing vision of a theocratic state that is fundamentally different from and opposed to the post-Enlightenment Christian values of the West.[111]

Any such attempt to distinguish legitimate public discourse and criminally punishable expression based upon its tone is highly problematic. If, as I have argued, the right to participate in public discourse is primarily valued because it is a necessary condition of political legitimacy, then restricting the tone of the expression might unduly interfere with this legitimization process. For many people the interest in expressing strong emotion about a public issue is every bit as important as conveying some precise idea. As the US Supreme Court has observed: 'Much linguistic expression serves a dual communicative function: it conveys not only ideas capable of relatively precise, detached expression but otherwise inexplicable emotions as well'.[112] Whether the imposition of civility norms on public discourse infringes the core right of democratic participation would thus seem to depend on whether the legitimating function of public discourse is properly measured primarily by the subjective perception of the speaker rather than by some more objective assessment of one's opportunity to participate freely and fairly in the public debate. This is a difficult issue about which I remain uncertain.

[109] <http://www.martinfrost.ws/htmlfiles/nov2006/bnp_trial.html> (last accessed 23 July 2008).

[110] The prosecutor, Rodney Jameson, QC, told the jury: 'We agree that freedom of expression is an important right but it cannot be unfettered. No society can permit disapproval of another race to be expressed in such strong terms that hatred be stirred up against people on the basis of race or ethnicity.' P. Stokes, 'White society is now a hell-hole, said BNP boss on race charges', *The Daily Telegraph*, 18 January 2006, <http://www.telegraph.co.uk/news/uknews/1508079/White-society-is-now-a-hell-hole,-said-BNP-boss-on-race-charges.html> (last accessed 23 July 2008). Whatever might be said about the propriety of imposition of such civility norm on public discourse, this was a particularly dubious case for doing so in that Griffin and Collett were not speaking to the public at large but to a small group of party supporters. Indeed, the general public became aware of these statements only because the meeting was secretly taped by an undercover BBC reporter making a documentary of the BNP. See 'Going Undercover in the BNP', *BBC News*, 15 July 2004, <http://news.bbc.co.uk/1/hi/magazine/3896213.stm> (last accessed 23 July 2008).

[111] *Islam Unveiled: Disturbing Questions about the World's Fastest-Growing Faith* (San Francisco: Encounter Books, 2003), 173.

[112] *Cohen* (n. 25 above), 26. See also J. Weinstein, 'Democracy, Sex and the First Amendment' (2007) 31 *N.Y.U. Rev. L. & Soc. Change* 865, 885–888.

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I am certain, however, that it would both be impractical and perilous to the dissent that must be allowed in any democratic society to leave it to prosecutors, judges, and juries to separate legitimate public discourse from punishable expression based on their assessment of whether the idea is expressed in too 'strong terms' or constitutes a 'crude rant' rather than a rational exposition. Any attempt to exclude speech from public discourse because of its overly strong or crude manner of expression would likely end up primarily reflecting the decision-makers' views about the merits of the idea rather than some principled decision about its tone. So, for a combination of theoretical and pragmatic concerns, I think it might have been better for the trial court to have concluded that Griffin had as much a right to condemn Islam as a 'wicked, vicious faith' as Spencer had to characterize this religion as 'fundamentally . . . opposed to the post-Enlightenment Christian values of the West'.

This does not mean, however, that it is necessarily impractical for a democratic society to try to impose some minimal civility on public discourse. While the theoretical concerns would remain, it might at least be more manageable to try to exclude certain highly inflammatory words and symbols from public discourse, such as Collett's calling asylum seekers 'cockroaches' or, more problematically, Griffin's referring to the founders of Islam as 'lunatics'. The particular words and symbols that are deemed so offensive as to be excluded from public discourse would, of course, vary with the conventions and mores of each society as well as with the exact context in which these terms are used. But even this more limited attempt to impose civility norms on public discourse will implicate the core norm of democratic participation.

As the United States Supreme Court explained in upholding the right of an antiwar protestor to wear a jacket in public emblazoned with the message 'Fuck the Draft': 'we cannot indulge the facile assumption that one can forbid particular words without also running a substantial risk of suppressing idea in the process'.[113] Aside from the emotive value of using such certain words and symbols, there is an essential connection between the form and content of speech. Thus any restriction on words or symbols may impair a speaker's ability to express the precise idea he or she wants to convey. In addition, as the Court also noted, government 'might soon seize upon the censorship of certain words as a convenient guise for banning the expression of unpopular ideas'.[114] John Stuart Mill similarly recognized that uncivil language challenging the *status quo* will likely be considered more offensive than the same uncouth expression used to support those in power.[115]

For all these reasons, American free speech doctrine generally forbids the government from imposing even minimal civility norms on public discourse.[116] Protestors in America have a constitutional right to use profanity

[113] *Cohen* (n. 25 above), 26. [114] Ibid.
[115] Mill (n. 15 above), 60–61.
[116] See Weinstein (n. 27 above), 47; Post (n. 22 above), 145–48.

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or epithets,[117] to burn the American flag,[118] or crosses,[119] or to display Swastikas[120] as part of public discourse. While such complete suspension of civility norms may not in principle be required by the core free speech right essential to any democracy, every democracy should at least carefully consider whether the benefit gained by imposing such civility norms is worth the inevitable cost to free and open public debate.

(iv) Group Defamation

In addition to uttering the crude attack on Islam just considered, Griffin made scurrilous charges against Muslims. After talking about how Muslim gangs raped children in a Yorkshire town, he exclaimed:

> The bastards that are in that gang, they are in prison so the public think it's all over. Well it's not. Because there's more of them. The police force and elected governors haven't done a damn thing about it. Their good book [the Koran] tells them that's acceptable. If you doubt it, go and buy a copy and you will find verse after verse and you can take any woman you want as long as it's not Muslim women.... These 18-, 19- and 25-year-old Asian Muslims are seducing and raping white girls in this town right now.... It's part of their plan for conquering countries. It's how they do it...as the last whites try and find their way to the sea.[121]

Are such calumnies properly considered no legitimate part of the speech by which the people govern themselves in a democracy? A plausible argument for excluding speech like this from public discourse is that it is defamatory. Many democracies (though not the UK, which relies on a public order concept to suppress hate speech such as this)[122] have laws against group defamation, traditionally on the basis of race, ethnicity, religion, and more recently on the basis of sexual orientation.[123] The laws are usually defended as mere extensions of laws against defamation against individuals: laws which have long operated in every democracy. If defamatory statements about individuals can be prohibited without violating the

[117] *Cohen*, n. 25 above; *Letter Carriers* v. *Austin* 418 US 264 (1974).
[118] *Texas* v. *Johnson* 491 US 397 (1989).
[119] *Virginia* v. *Black* 538 US 343 (2003).
[120] *Skokie* v. *Nationalist Social Party* 373 NE 2d 21 (Ill Sup Ct, 1978).
[121] See Stokes (n. 110 above).
[122] Use of the group defamation concept as a basis of hate speech regulation is foreclosed in the UK by the exceedingly limited scope of or group defamation under English law. See *Knuppfer* v. *London Express News Ltd* [1944] AC 116. (I am grateful to Ivan Hare for bringing this to my attention.) Such careful confinement of the reach of group defamation, then, is one instance in which the English judiciary was more protective of freedom of expression than was the US Supreme Court. See n. 124 below.
[123] See, eg, Article 266(b) of the Danish Penal Code, which outlaws statements 'threatening, insulting or degrading a group of persons on account of their race, colour, national or ethnic origin [or] belief'; s. 130 of the German Penal Code, prohibiting 'attacks on human dignity by insulting, maliciously maligning, or defaming part of the population'; and s. 137(c) of the Dutch Criminal Code, which forbids 'deliberately giv[ing] public expression to views insulting to a group of persons on account of their race, religion or conviction or sexual preference'.

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core democratic right of political participation, then, the argument continues, so can defamatory statements about groups of individuals.[124]

The comparison to laws against individual defamation is, however, inapt. To begin with, unlike defamatory statements about individuals which will usually have no bearing on matters of public concern, defamatory statements about racial, ethnic, religious, or sexual orientation groups will almost always be inextricably linked with some larger social critique. True, if, as is now typically the case, only false statements of fact can be defamatory, then the prohibition against group defamation would in theory at least seem consistent with the core precept of democratic participation, for it would be difficult to argue that in principle one has a fundamental right to make false statements even in public discourse. Crucially, however, the bigoted statements that group defamation laws usually target are not statements of fact like those involved in individual defamation actions. Rather, they are typically non-falsifiable interpretations of data, statements which are more commonly called opinions.[125] For instance, when racists in the US impugn African-Americans by claiming that the reason there is a disproportionate number of blacks in American prisons is that blacks are genetically predisposed to criminal activity, they are not so much making a false statement of fact as they are interpreting data based on their world view. Though evaluative judgments such as these may not be the best inferences from the data, and in many cases may even be implausible, they are not susceptible to the same kind of definitive disproof as the typical statement in an individual defamation suit, for instance the statement that Jones is a thief.

The same is true of Griffin's statements about Muslims. The import of Griffin's claims is that sexual crimes committed by Muslims are propelled by edicts from the Koran and the desire of Muslims to take over Britain. It would seem, however, that in a democracy it is more appropriate for the court of public opinion rather than for a court of justice to render judgment on claims of this nature. It is thus arguable that suppression of views such as these violates the core right of each individual to express opinions on matters of public concern as well the right of the audience to hear and consider such perspectives. But even if it is in principle permissible in a democracy to punish group defamation of this sort,

[124] In 1952, a sharply divided US Supreme Court invoked precisely this rationale to uphold a group libel law prohibiting the publication of any material that 'portrays depravity, criminality, unchastity, or lack of virtue of a class of citizens, of any race, color, creed or religion which . . . exposes [such] citizens . . . to contempt, derision or obloquy'. *Beauharnais* v. *Illinois* 343 US 250. Although never formally overruled, in light of subsequent seismic changes in American free speech doctrine, especially the extension of First Amendment protection to libellous statements on matter of public concern in cases such as *New York Times* v. *Sullivan* 376 US 254 (1964) and *Gertz* v. *Robert Welch, Inc.* 418 US 323(1974), this decision is no longer good law. See *Nuxoll* (n. 42 above), 672 (Posner, J): '[T]hough *Beauharnais* . . . has never been overruled, no one thinks the First Amendment would today be interpreted to allow group defamation to be prohibited'. For a more detailed discussion of how subsequent decisions have sapped *Beauharnais* of all vitality, see Weinstein (n. 27 above), 56–59.

[125] See Weinstein (n. 84 above), 159–60.

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experience in the US shows that it is most difficult to excise defamatory statements on matters of public concern from public discourse without significantly impeding democratic self-governance.[126]

7. Conclusion

The core democratic right of citizens in England to express unpopular ideas in public is insecure. To a considerable extent this insecurity is a product of the uncertainty created by overly refined abstract distinctions that are unworkable in practice, such as the *Hammond* court's attempt to distinguish ideas that 'insult' from those that 'offend, shock, or disturb'. Adding to this uncertainty is the possibility, demonstrated by *Norwood*, that courts will ascribe the most pernicious meaning to ambiguous language. As a result of this uncertainty, law enforcement officials have enormous discretion to squelch protest, as shown by the recent citation of a protestor for stating that Scientology is a cult, while citizens have insufficient guidance about what ideas they can safely express in public without fear of arrest or even conviction under the Public Order Act. Relatedly, the core right of free speech is weakened by the lack of objective criteria for determining whether one has a right to express unpopular ideas in public. The use of vague standards and amorphous balancing tests that characterize English free speech jurisprudence invite law enforcement officials, juries and even courts themselves to decide cases on ideological grounds rather than on a principled basis.[127] Other areas of the law may well be served by flexible standards or nuanced tests. But to achieve the certainty and objectivity essential to protection of dissent in a democratic society, free speech doctrine should employ rules that are 'hard, conventional, difficult to evade'.[128]

As much as these pragmatic considerations explain the insecure status of the right to express unpopular views in public, a more profound cause is the insufficient weight that English courts have afforded this right. Rather than treating the right to participate in public discourse as a fundamental individual right that can be violated only in truly extraordinary circumstances, both *Hammond* and *Norwood* and the precedent it follows consider this right as properly outweighed by various societal interests, such as preventing people from being insulted or by the promotion of tolerance. This conception of the right of free speech seems to reflect the dominant view among English jurists. In a recent House of Lord's

[126] See *Sullivan*, n. 124 above.

[127] '[W]here messages are proscribed because they are dangerous, balancing tests inevitably become intertwined with the ideological predispositions of those doing the balancing—or if not that, at least with the relative confidence or paranoia of the age in which they are doing it . . .' J. H. Ely 'Flag Desecration: A Case Study in the Roles of Categorization and Balancing in First Amendment Analysis' (1975) 88 *Harv. L. Rev.* 1482, 1501.

[128] See text accompanying n. 62 above. See also Hare (n. 98 above), 526: '[Courts in the UK] have not formulated a method which contains sufficient guarantees of judicial objectivity when the court is confronted with the expression of what are frequently unappealing opinions'.

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decision, one of the realm's most prominent and respected judges, Lord Bingham of Cornhill, writes that the 'fundamental rationale of the democratic process' is:

> that if competing views, opinions, and policies are publicly debated and exposed to public scrutiny the good will over time drive out the bad and the true prevail over the false. It must be assumed that, given time, the public will make a sound choice when, in the course of the democratic process, it has the right to choose.[129]

On this view, free speech is valued not as a true individual right but as instrumental to the democratic process because it will help the electorate make a 'sound choice'.[130] Decisions like *Hammond* and *Norwood* are consistent with this conception of 'fundamental rationale' of free speech in a democratic society. Although free speech may be an important policy goal, as such it is susceptible to being outweighed by other important policy considerations such as promoting tolerance or protecting people from insult. The balance, moreover, will tip sharply in favour of these other policy concerns if the goal of promoting 'sound choice' by the electorate will be only minimally impaired by suppression of the speech in question, as will be the case if the substance of the view some pesky protestor wants to express in the public square is readily available in media such as newspapers, books, or the Internet.

But with due respect to Lord Bingham, as important as these instrumental concerns may be, they do not constitute the 'fundamental rationale of the democratic process' underlying the right to free speech. What this perspective misses is the interest that each individual has in participating in the public discussion by which collective decisions are made, an interest that as I have emphasized throughout this chapter is vitally linked to legitimacy. Punishing Hammond for expressing the view that homosexuality is immoral may not significantly impair the search for truth nor interfere with the public making a 'sound choice'; but excluding him from participating in the public conversation about the morality of homosexuality undermines the legitimacy of any decision made by the people or their representatives relating to this issue.

In the early part of the twentieth century, Justice Louis Brandeis sagely observed that to formulate sound free speech doctrine courts 'must bear in mind why a State is, ordinarily, denied the power to prohibit dissemination of social, economic, and political doctrine which a vast majority of citizens believes to be false and fraught with evil consequence'.[131] So long as English courts continue to conceive of the right to participate in public discourse as an important social goal enhancing the quality of the democratic process rather than as a fundamental individual right constitutive of democracy, there is little chance that they will devise doctrine adequate to protect the core right to free speech essential to any democratic society.

[129] *Animal Defenders* (n. 72 above), para. 28.

[130] This view is similar to Alexander Meiklejohn's position that the basic value of free speech is that it promotes 'the voting of wise decisions', (n. 13 above), 25. For a trenchant criticism of Meiklejohn's view, see Post (n. 22 above), 268–89.

[131] *Whitney* v. *California* (n. 91 above), 374, concurring opinion.

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